

ON-PREMISES TRACK

120-minute floor ? 40-question final exam

Module 01: Welcome and Course Overview

What to expect from your Montana RASS On-Premises training

Estimated time: 5 minutes

Learning outcomes

- **K1:** Understand Montana's RASS framework: who must train, when, and why (MCA 16-4-1005, MCA 16-4-1006 (HB 157, HB 196))

Welcome to Montana Responsible Alcohol Sales and Service Training

S1-C1 ? TEXT

Welcome to CertReady's Montana Responsible Alcohol Sales and Service training, the on-premises track. Over the next two hours you will learn the practical knowledge and the Montana-specific law you need to serve, mix, or supervise alcohol service legally and safely under Montana's Responsible Alcohol Sales, Service, and Delivery Act.

Outcomes: K1

S1-C1B ? CALLOUT

About 'RASS'. You'll see this acronym throughout the course and on Montana's verification database. RASS stands for Responsible Alcohol Sales and Service. As of January 1, 2026, the Act is officially named the Responsible Alcohol Sales, Service, and Delivery Act (HB 211 added 'Delivery' to cover third-party drivers), but the industry still calls the program RASS. When we say 'Montana RASS,' that's what we mean.

Outcomes: K1

S1-C2 ? CALLOUT

MCA 16-4-1005 (summary): Montana law requires every licensee to ensure that each employee authorized to sell, serve, or deliver alcohol, plus each immediate supervisor, completes a state-approved training program **within 60 days of the employee's date of hire** and **every 3 years thereafter**. The statute's operative subsection (1)(a) requires "successful completion of training"; the timing requirements are set out elsewhere in the same section.

Outcomes: K1

S1-C3 ? TEXT

Effective **January 1, 2026**, Montana law requires two distinct training tracks: an on-premises course of **at least two hours** (this course), and a separate off-premises course of **at least one hour**. The two tracks share a lot of universal content but the on-premises track goes deeper on intervention, dram shop, and table-side cut-off scenarios because that is where most over-service incidents happen.

Outcomes: K1

S1-C4 ? CALLOUT

Why this matters now. HB 157 (2025), HB 196 (2025), and HB 211 (2025) changed Montana's alcohol-server framework on January 1, 2026. The on/off split is new. Digital ID coverage is new. And third-party delivery now has its own license and training rules. Even servers who took an older RASS course need refreshed training to be compliant.

Outcomes: K1

What you will learn

S2-C1 ? LIST

Course modules

- **Module 2 — Alcohol and the body.** BAC, absorption, standard drinks, what counts as alcohol under Montana law.
- **Module 3 — Recognizing intoxication and refusing service.** The Montana 'actually, apparently, or obviously intoxicated' standard, behavioral and physical cues, refusal scripts.
- **Module 4 — Checking IDs.** Montana's acceptable ID list including digital IDs (new in 2025) and tribal IDs, fake-ID detection, calculating the legal date of birth.
- **Module 5 — Sales to minors.** Progressive penalty schedule, the narrow MCA 16-6-305(1) (a) exception (parent/guardian/medical/religious), common minor tactics and how to refuse them.
- **Module 6 — Dram shop and the three liability types.** When a server can be sued, how Montana's three-trigger framework works, the damage caps that apply.
- **Module 7 — Hours, promotions, and Montana license categories.** When you can sell, what promotions are allowed, how license types differ.
- **Module 8 — Montana DUI law and the server's role.** Per-se BAC limits, implied consent, what to do when a customer wants to drive home.



MT-ALCOHOL-M01-s2-c1.png

S2-C2 ? TEXT

After all modules are complete and you have spent **at least 120 minutes** on content, the final exam will unlock. The exam is **40 multiple-choice questions** drawn from a **64-question pool**. You need **80% to pass** under ARM 42.13.907 (adopted March 7, 2026). If you score 70-79% on your first attempt, you may retake the final exam only. If you score below 70%, you must retake the entire program before another final-exam attempt.

Outcomes: K1

Your certificate and how it gets to your employer

S3-C1 ? TEXT

When you pass the final exam, CertReady issues you a certificate immediately. Your CertReady certificate is your Montana training credential. There is no separate state-issued license to chase. Save the PDF, send a copy to your employer, and keep your certificate number handy in case anyone needs to verify it.

Outcomes: K1

S3-C2 ? CALLOUT

Verification. Anyone (your employer, an auditor, the regulator) can verify your training at svc.mt.gov/dor/liquorserver/public/certsearch.aspx using your last name and date of birth. Per ARM 42.13.904 (as adopted March 7, 2026), CertReady submits training records electronically to Montana CARD within two weeks of your completion via the CARD-approved secure electronic process.

Outcomes: K1

S3-C2B ? CALLOUT

Did your employer sign you up? If your bar, restaurant, or restaurant group is using CertReady, they have a business dashboard at certready.org/business. They can see your training progress in real time, get a notification when you pass, and see your expiration date so they can remind you when it's time to renew. You don't need to do anything for this. If they enrolled you with their CertReady code, the link is already set up. You'll still get your own copy of the certificate by email.

Outcomes: K1

S3-C3 ? TEXT

Your certificate is valid for **3 years** from the completion date. About **60 days before it expires**, CertReady will email you a reminder so you can re-take and stay compliant.

Outcomes: K1

Welcome Quiz

Passing score: 80%

Q1 ? MULTIPLE_CHOICE

When must a new on-premises employee complete their RASS training under Montana law?

Options

1. **a.** Before their first shift
2. **b.** Within 30 days of hire
3. **c.** Within 60 days of hire **Correct**
4. **d.** Within 90 days of hire

Correct answer: c

Outcomes: K1

Q2 ? MULTIPLE_CHOICE

How often must a Montana RASS-trained employee renew the training?

Options

1. **a.** Every year
2. **b.** Every 2 years
3. **c.** Every 3 years **Correct**
4. **d.** Every 5 years

Correct answer: c

Outcomes: K1

Q3 ? MULTIPLE_CHOICE

If you work behind the bar at a restaurant, which Montana RASS track applies to you?

Options

1. **a. On-premises (at least 2 hours) Correct**
2. **b. Off-premises (at least 1 hour)**
3. **c. Either, you can choose**
4. **d. Both — you must complete both tracks**

Correct answer: a

Outcomes: K1

Q4 ? MULTIPLE_CHOICE

What score do you need on the final exam to pass?

Options

1. **a. 60%**
2. **b. 70%**
3. **c. 75%**
4. **d. 80% Correct**

Correct answer: d

Outcomes: K1

Q5 ? SHORT_ANSWER

In your own words, what makes Montana's 2026 RASS training different from a generic alcohol-server course?

Accepted keywords: on-premises, off-premises, two hours, 120 minutes, digital ID, HB 196, HB 157, ARM 42.13, Montana law, MCA 16-4-1006, tribal

Outcomes: K1

Module 02: Alcohol and the Body

BAC, absorption, standard drinks, and how Montana defines an alcoholic beverage

Estimated time: 15 minutes

Learning outcomes

- **K2:** Effects of alcohol on the body (ARM 42.13.907(1)(a))
- **K3:** Standard drink equivalency and Montana's >0.5% ABV definition (MCA 16-1-106(4); ARM 42.13.907(1)(b))
- **P1:** Translate menu items into standard-drink equivalents in real time (ARM 42.13.907(1)(a))

What counts as alcohol in Montana

S1-C1 ? TEXT

Montana defines an alcoholic beverage as any beverage with **more than 0.5% alcohol by volume** (MCA 16-1-106(4)). That includes beer, wine, spirits, cider, hard seltzer, ready-to-drink cocktails, and pre-mixed canned drinks. Anything stronger than non-alcoholic beer falls under Montana's alcohol laws and triggers every rule in this course: ID checks, refusal-of-service obligations, dram shop liability under MCA 27-1-710, and the hours-of-service rules in MCA 16-3-304.

Outcomes: K3

S1-C2 ? CALLOUT

MCA 16-1-106(4) (verbatim): "'Alcoholic beverage' means a compound produced and sold for human consumption as a drink that contains **more than 0.5% of alcohol by volume.**"

Outcomes: K3

S1-C3 ? CALLOUT

The 0.5% line at the bar. A few common items sit close to the threshold. Most kombucha is 0.5–2.5% ABV; the high end is alcohol under Montana law. "Non-alcoholic" beer is legally capped at 0.5% ABV, so it falls outside the rules, but a so-called "NA" craft option that prints 0.6% is in. Hard kombucha (3–9%) is fully alcoholic. When a customer says "it's just a kombucha," check the label.

Outcomes: K3

Standard drinks: the math behind every pour

S2-C1 ? TEXT

Servers and bartenders need to think in **standard drink equivalents** because that is the unit alcohol affects the body in. The CDC and NIAAA define one standard drink as approximately **14 grams (0.6 fluid ounces) of pure ethanol**. That works out to: **12 oz of beer at 5% ABV**, **5 oz of wine at 12% ABV**, or **1.5 oz of distilled spirits at 40% ABV (80 proof)**. All three put the same amount of alcohol into the bloodstream.

Outcomes: K3

S2-C2 ? LIST

Real bar pours: how many standard drinks

- 12 oz domestic beer at 5% ABV (Coors Banquet, Bud Light, Miller Lite) = **1.0 standard drink**.
- 12 oz craft lager at 6.5% ABV = **1.3 standard drinks**.
- 16 oz craft IPA at 7.5% ABV = **1.9 standard drinks**.
- 16 oz strong craft beer at 9% ABV = **2.3 standard drinks**.
- 5 oz wine pour at 12% ABV = **1.0**. A restaurant 6 oz pour at 14% ABV (most California reds) = **1.4**.
- 1.5 oz spirit pour at 40% ABV (one shot) = **1.0**. A 2 oz "tall" = **1.3**. A 3 oz double = **2.0**.
- 12 oz hard seltzer at 5% ABV = **1.0**. A 9% ABV version = **1.8**.
- Margarita with 2 oz tequila + 1 oz triple sec (typical bar pour) = **~1.7 standard drinks**. A "long pour" version with 3 oz tequila = **~2.3**.

Outcomes: K3, P1

S2-C3 ? CALLOUT

The pitfall. Customers count drinks. The body counts ounces of pure alcohol. A customer who tells you "I've only had two" but those two were 16 oz strong craft beers at 9% ABV has had the equivalent of **almost 5 standard drinks**. The lesson: in your head, translate every order to standard drinks before you decide whether to pour the next one.

Outcomes: K3, P1

How alcohol moves through the body

S3-C1 ? TEXT

Alcohol is absorbed mostly through the small intestine. About **20% absorbs through the stomach lining**; the rest moves into the small intestine and crosses into the bloodstream. Once in the blood it reaches every organ within minutes—brain, heart, liver, kidneys. The brain is the one that matters for service decisions: alcohol depresses central nervous system function, which is why coordination, judgment, and reaction time deteriorate before slurred speech and stumbling become visible.

Outcomes: K2

S3-C2 ? CALLOUT

The 20–40 minute window. Alcohol takes 20 to 40 minutes to fully absorb after a drink. So a customer who pounded three shots at 9:00 PM may not show full impairment until 9:30 PM, when their BAC is still climbing. **The most dangerous moments often come AFTER you've stopped serving someone**—the alcohol they already drank is still hitting them. This is why "one for the road" is the worst possible service decision: you are pushing their final BAC even higher when it's already rising on its own.

Outcomes: K2

S3-C3 ? LIST

Factors that change how fast alcohol affects someone

- **Body weight:** smaller people reach a given BAC on fewer drinks. A 110 lb adult reaches 0.08 BAC on roughly 2 drinks in an hour; a 220 lb adult needs about 4.
- **Sex:** at the same weight, women typically reach a higher BAC than men because of body composition (more body fat, less water to dilute alcohol) and lower stomach alcohol-dehydrogenase activity.
- **Food:** drinking on a full stomach slows absorption substantially—peak BAC can be 30–40% lower than the same drinks on an empty stomach. Food slows absorption; it does not eliminate it.
- **Rate of consumption:** the liver clears about **0.015 BAC per hour**—roughly one standard drink per hour. Drink faster than that and BAC rises. Drink slower and the liver keeps up.
- **Medications:** opioids, benzodiazepines (Xanax, Valium), antihistamines (Benadryl), and many antidepressants amplify alcohol's effects. A customer on these meds at 0.05 BAC may behave like a customer at 0.10 BAC.
- **Tolerance vs. impairment:** a regular heavy drinker may not LOOK impaired at a BAC that legally counts as impaired. Tolerance hides the visible signs—it does not change the BAC, the legal liability, or the reaction-time deficit.

Outcomes: K2

S3-C4 ? TEXT

Tracking a real customer. Here's how the math plays out at the bar for one customer over 90 minutes:

Outcomes: K2, P1

S3-C5 ? LIST

The setup

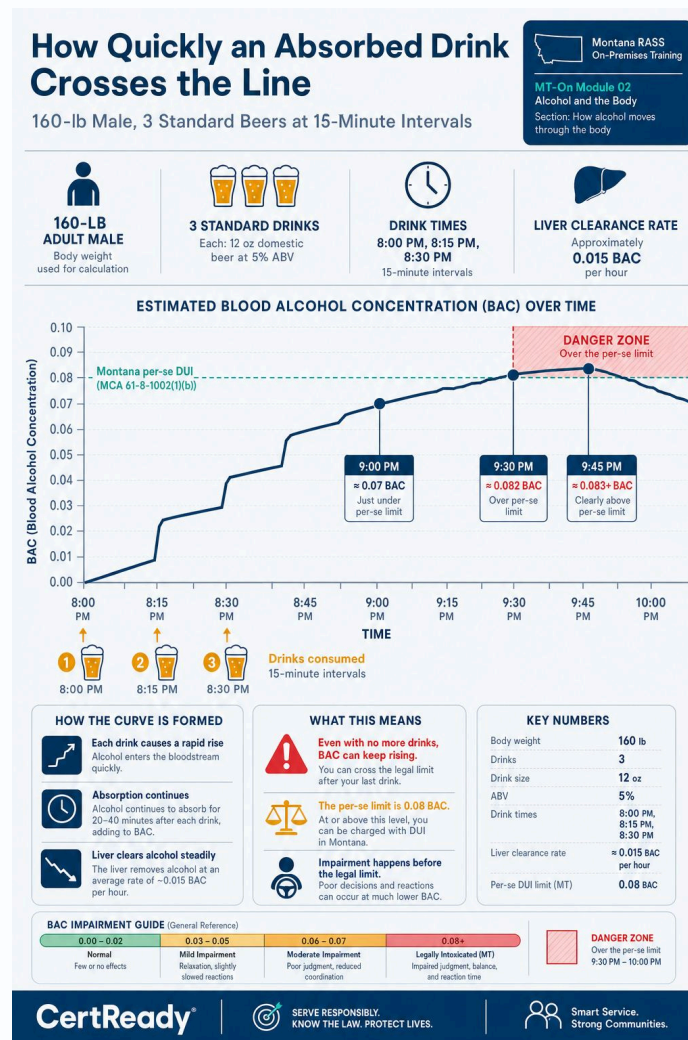
- **Customer:** 160 lb male
- **Drinks:** 3×12 oz domestic beer at 5% ABV (3 standard drinks)
- **Pace:** one drink every 15 minutes between 8:00 and 8:45 PM
- **Liver clearance:** about 0.015 BAC per hour (~1 standard drink/hour)
- **Consumption rate:** $4\times$ the liver's clearance rate

Outcomes: K2, P1

S3-C6 ? LIST

Timeline of impairment

- **9:00 PM** — BAC approximately **0.07**, just under Montana's 0.08 per-se DUI limit
- **9:00–9:30 PM** — BAC keeps climbing because alcohol he already drank is still absorbing
- **9:30 PM** — BAC likely above **0.08**, even if he stops drinking now
- **9:45 PM** — clear impairment if you served a 4th drink at 9:00 PM



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Outcomes: K2

S3-C7 ? CALLOUT

The trap. A customer who reads as "still legal" right now may cross the line in the next 20–30 minutes from alcohol they already drank. **Don't time service decisions on the current pour.** Time them on where the BAC will be when the customer leaves and gets behind a wheel.

Outcomes: K2

What BAC looks like in behavior

S4-C1 ? TEXT

BAC translates to behavior in roughly predictable bands. You don't need to estimate exact BAC—you need to recognize the band a customer is in and adjust service accordingly. The bands below are based on NHTSA driving-impairment research and are useful for service decisions, not for diagnosis.

Outcomes: K2

S4-C2 ? LIST

BAC bands and what you'll see

- **0.02–0.04 (one to two drinks).** Mild relaxation, slight mood lift. Most people show no obvious outward signs.
- **0.05–0.07 (two to three drinks).** Lower inhibitions, reduced judgment, slightly slowed reaction time. Customers may laugh louder, talk more, get more familiar. Driving is impaired; **a Montana CDL holder is over the per-se limit at 0.04, and an under-21 driver is over at 0.02.**
- **0.08–0.12 (the per-se DUI band).** Slurred speech, slowed reflexes, impaired coordination, balance issues, loss of fine motor control. **This is the legal-impairment line for adults driving in Montana under MCA 61-8-1002.**
- **0.13–0.20.** Visible drunkenness. Stumbling, dropping things, bloodshot or glassy eyes, loud or argumentative behavior, possible nausea. **This person should not have been served the last drink.** Continued service exposes the establishment to dram shop liability under MCA 27-1-710.
- **0.20+.** Risk of blackout, loss of consciousness, vomiting. Above 0.30, medical-emergency risk becomes real (alcohol poisoning, respiratory depression). Call 911—do not just send them home.

Outcomes: K2

S4-C3 ? CALLOUT

Tolerance hides the warning signs but not the BAC. A regular drinker may show none of the 0.13–0.20 signs at a BAC of 0.18. Their breath, slurring, and stumbling are masked by tolerance. **Their judgment, reaction time, and impairment are still compromised at the same BAC.** Tolerance can hide visible cues, but it does not reduce impairment or make service safer. For service decisions, do not rely on "they look fine" if drink count, pace, or behavior suggests impairment. (Civil dram-shop liability under MCA 27-1-710 depends on the statutory triggers — including evidence of visible intoxication at the time of service — covered in Module 6.)

Outcomes: K2

Two scenarios you'll see at a Montana bar

S5-C1 ? SCENARIO

Scenario 1: "I had dinner first." A 130 lb woman comes to the bar at 7:45 PM. She mentions she had a steak dinner at 6:30 PM and has not had anything to drink yet tonight. Over the next 90 minutes she has three margaritas (your bar's standard pour: 2 oz tequila + 1 oz triple sec, so each margarita is ~1.7 standard drinks). At 9:15 PM she orders a fourth.

What is the right call?

Options

1. **a.** Pour the fourth—she had food, she's not stumbling.
2. **b.** Slow service: water, food, and time before pouring another. Suggest a non-alcoholic option.
3. **c.** Refuse and ask her to leave immediately.

Outcomes: K2, P1

S5-C2 ? SCENARIO

Scenario 2: "He's a regular, he's fine." A 220 lb man you've served twice a week for three years comes in at 6:00 PM. He drinks four 16 oz craft lagers at 7.6% ABV (so each pint is about 1.9 standard drinks) over 2.5 hours. He doesn't slur. He's not stumbling. He's having a calm conversation with his friend. He asks for a fifth.

What is the right call?

Options

1. **a.** Serve him—he's a regular, he's calm, he has tolerance.
2. **b.** Stop service, offer water and a ride. Explain you cannot serve him another at this point.
3. **c.** Switch him to a low-ABV beer (3.5% session lager) and reassess in 30 minutes.

Outcomes: K2, P1

What this means for service decisions

S6-C1 ? TEXT

All of this physiology rolls up into one practical rule: **you cannot serve based on drink count alone.** A 240 lb regular drinker who has had four beers in two hours may be fine. A 110 lb first-timer who has had two cocktails on an empty stomach may be visibly intoxicated. You watch the person, not the receipt.

Outcomes: K2

S6-C2 ? TEXT

In practice, the working tools for monitoring a customer are: count standard drinks (not menu items), track time on premises, watch for behavioral cues from the BAC bands above, and pay attention to context—has this person eaten, are they on medications, did they show up already affected? When in doubt, slow the service. The goal is not always to refuse the next drink; the goal is to keep the customer at a BAC that is safe for them and legal for you to serve.

Outcomes: K2

S6-C3 ? CALLOUT

The slowing-service playbook. These are not refusals—they are how seasoned bartenders keep customers and licenses safe at the same time:

- Suggest a water back with the next drink.
- Suggest food: "the kitchen still has wings, want me to grab you an order?"
- Slow the pour: take a longer route back to the bar, restock, take 5 extra minutes between rounds.
- Switch to lower-ABV options: "how about a Coors Banquet? Great session beer."
- Engage in conversation: a chatty bartender is a slower-pour bartender.
- If the table is having a serious moment, refill water glasses and suggest the appetizer menu.

Outcomes: K2

S6-C4 ? TEXT

Why slow service is also better business. Beyond the legal floor, the licensee's bottom line depends on customers coming back. A patron who is over-served on Tuesday and wakes up sick on Wednesday is unlikely to return; a patron who was served thoughtfully and left at a manageable BAC is the regular who walks back in next Friday. National hospitality data has consistently shown that bars with strong service-pacing cultures retain customers longer and generate higher per-visit revenue from food and non-alcohol items than bars that simply push drinks. The slowing-service playbook in the previous chunk is not a workaround for a refusal; it is a posture that lengthens the average visit, increases food attach, and reduces the catastrophic-event risk that ends licensee careers. Montana DOR investigators interviewed in 2024 industry roundtables consistently identify 'a strong service-pacing culture' as the single best predictor of a clean licensee record over a 5-year horizon, well ahead of any single training feature or technology investment. The pattern shows up in the casualty data too: industry-aggregated claim records suggest that bars with documented service-pacing policies and incident-log discipline file dram-shop claims at roughly one-third the rate of comparable bars without those practices. The licensee who treats pacing as a culture (not a checklist item) buys themselves margin in three ways at once — better customer retention, lower insurance loss ratios, and a measurably reduced probability of a catastrophic over-service event ever reaching the courthouse.

Outcomes: K2

Module 2 Quiz

Passing score: 80%

Q1 ? MULTIPLE_CHOICE

What is the minimum alcohol-by-volume that makes a beverage 'alcoholic' under Montana law?

Options

1. **a. More than 0.5% Correct**
2. **b. 1.0%**
3. **c. 3.2%**
4. **d. 5.0%**

Correct answer: a

Outcomes: K3

Q2 ? MULTIPLE_CHOICE

A customer orders a 16 oz craft IPA at 7.5% ABV. About how many standard drinks is that?

Options

1. **a. 1.0**
2. **b. 1.4**
3. **c. 1.9 Correct**
4. **d. 3.0**

Correct answer: c

Outcomes: K3, P1

Q3 ? MULTIPLE_CHOICE

About how much BAC does the liver clear per hour, on average?

Options

1. a. 0.005
2. b. 0.015 **Correct**
3. c. 0.05
4. d. 0.10

Correct answer: b

Outcomes: K2

Q4 ? MULTIPLE_CHOICE

A regular heavy drinker who 'doesn't look drunk' is safe to keep serving even if they have had a lot.

Options

1. true. True
2. false. False **Correct**

Correct answer: false

Outcomes: K2

Q5 ? MULTIPLE_CHOICE

Why is the 20–40 minute window after a drink important for service decisions?

Options

1. **a.** Customers usually leave the bar in that window
2. **b.** BAC keeps rising during that window even after the customer stops drinking **Correct**
3. **c.** The liver speeds up alcohol clearance during that window
4. **d.** Food fully neutralizes the alcohol in that window

Correct answer: b

Outcomes: K2

Q6 ? SHORT_ANSWER

Name two factors that can speed up how quickly a customer reaches a high BAC.

Accepted keywords: empty stomach, no food, small body weight, smaller body, fast drinking, quick consumption, medication, drugs, low body weight, weight

Outcomes: K2

Module 03: Recognizing Intoxication and Refusing Service

Montana's 'actually, apparently, or obviously intoxicated' standard and how to refuse cleanly

Estimated time: 25 minutes

Learning outcomes

- **K4:** Behavioral and physical signs of intoxication; Montana's two parallel service-side standards (MCA 16-3-301(4)(b) three-prong 'actually, apparently, or obviously intoxicated' AND MCA 16-6-304 single-prong 'apparently under the influence') (MCA 16-3-301(4)(b), MCA 16-6-304)
- **P1:** Identify behaviors that meet the Montana intoxication standard (MCA 16-3-301(4)(b))
- **P6:** Refuse service in a firm but respectful way; document in incident log (ARM 42.13.907(1)(g)-(h))

The Montana legal standard

S1-C1 ? TEXT

Montana law uses TWO parallel tests for over-service. **MCA 16-3-301(4)(b)** prohibits selling alcohol to a person who is **'actually, apparently, or obviously intoxicated'** — the three-prong phrase. **'Actually'** covers a person who really is impaired — even if the signs are subtle. **'Apparently'** covers a person who looks impaired to a reasonable observer; this is the standard that applies most often at the bar. **'Obviously'** covers the loud, falling-down case that anyone could see from across the room. **MCA 16-6-304** is a separate, broader prohibition: it bars selling, serving, or giving an alcoholic beverage to a person who is **'apparently under the influence of alcohol'** (a single-prong test). The two statutes work together: refuse if either standard is met.

Outcomes: K4

S1-C2 ? CALLOUT

MCA 16-3-301(4)(b) (paraphrase, statutory phrase verbatim): Montana law prohibits selling or giving alcoholic beverages to "any person **actually, apparently, or obviously intoxicated**" — the bracketed three-prong phrase is the statute's exact operative language.



MCA 16-3-301(4)(b)

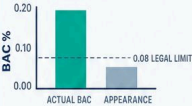
SERVICE REFUSED IF **ANY** PRONG IS MET.

1 ACTUALLY



The customer is, in fact, **intoxicated** regardless of appearance.

WHAT THIS MEANS
Intoxication exists even if it isn't obvious. Your duty is based on the truth, not what's visible.



Can be intoxicated even if they seem "fine."

2 APPARENTLY



A reasonable server, seeing the customer's behavior, **would conclude they are intoxicated.**

WHAT THIS MEANS
Use your training and experience. If a reasonable server would conclude intoxication, you must refuse service.



When in doubt, refuse service.

3 OBVIOUSLY



The cues are so clear **no reasonable person** could miss them.

WHAT THIS MEANS
The signs of intoxication are unmistakable. Service must be refused immediately.

- Loss of balance or coordination
- Slurred or incoherent speech
- Behavior that is disruptive or unsafe
- Passing out or unconsciousness

These are clear. Refuse service.



IMPORTANT NOTE

Civil dram-shop trigger under **MCA 27-1-710** uses a different statutory standard (**visibly intoxicated**) — see Module 6.



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Outcomes: K4

S1-C3 ? TEXT

Practical translation. If you have any reasonable belief the person is impaired, the law treats that as enough. You do not need a breathalyzer. You do not need a confession. The 'apparent' test is your professional judgment based on what the person is doing in front of you. The reason Montana wrote the standard this way is to give servers cover when they make the call: a court will not require you to prove a customer's exact BAC before refusing a pour. The standard is what a reasonable server would conclude.

Outcomes: K4

S1-C4 ? CALLOUT

Why the dual-statute approach matters. MCA 16-3-301(4)(b) gives the three-prong service-side test ('actually, apparently, or obviously intoxicated'). MCA 16-6-304 adds a separate, broader prohibition using a single-prong test ('apparently under the influence of alcohol'). The three-prong test asks a server to refuse not only on visible cues but also on what the server actually knows about the customer (e.g., the third double in 20 minutes); the single-prong test in 16-6-304 catches anyone who appears under the influence to a reasonable observer. Tolerance does not change either standard. *Note: Montana's civil dram-shop trigger under MCA 27-1-710 uses yet a third statutory phrase — 'visibly intoxicated' plus 'knew or should have known' — covered in Module 6.*

Outcomes: K4

Behavioral and physical signs

S2-C1 ? TEXT

BAC translates to behavior in roughly predictable bands. Module 2 covered the BAC physiology; here we tie it to what you actually see across the bar. The cues below are drawn from NHTSA driving-impairment research and the TIPS curriculum that most server-training programs use as a baseline. You don't need to estimate exact BAC. You need to recognize the cluster of cues that puts a customer into the 0.08+ range — the legal-impairment line — so you can stop pouring before the bar is on the hook.

Outcomes: K4, P1

S2-C2 ? LIST

Behavioral cues

- **Slurred or thick speech** — words run together, S sounds soften, sentences trail off.
- **Repeating the same story or question** — the customer asks twice for the same drink, or tells you the same anecdote you already heard.
- **Inability to focus eyes** on the menu, the bar tab, or the person across the table.
- **Loss of inhibition:** louder than the room, overly familiar with you or other customers, jokes that cross lines they wouldn't normally cross.
- **Mood swings** between cheerful, weepy, and angry within minutes of each other.
- **Bragging about consumption** — "I've had six already and I'm fine" or "I can drive home, I just live around the corner."
- **Aggressive or argumentative tone** — picking fights with friends, complaining about prices they accepted earlier, challenging your refusal politely or rudely.

CERTREADY MONTANA RASS TRAINING

BAR-SIDE BEHAVIORAL CUES: WHEN TO REFUSE THE NEXT POUR

 **TWO OR MORE CUES STACKING**
Observed at the same time or throughout the visit

 **DRINK COUNT**
Consistent with impairment risk

 **REFUSE THE NEXT POUR**

MCA 16-3-301(4)(b)

- 
SLURRED OR THICK SPEECH
Speech is hard to understand or noticeably slurred.
- 
REPEATING THE SAME STORY
Tells the same story or asks the same questions repeatedly.
- 
SWAYING OR UNSTEADY GAIT
Unsteady when sitting, standing, or walking.
- 
GLASSY / BLOODSHOT EYES
Eyes appear glassy, reddened, or unfocused.
- 
LIGHTING TROUBLE
Having a hard time lighting a cigarette, vape, or other item.
- 
FUMBLING CASH / CARD
Difficulty handling money or card; dropping items or losing track.
- 
GETTING LOUDER / ARGUMENTATIVE
Voice volume increasing or becoming argumentative, agitated, or aggressive.
- 
KNOCKING OVER A GLASS
Accidentally knocking over or spilling drinks or other items.

 **YOUR DECISION MATTERS.**
PREVENT. PROTECT. SERVE RESPONSIBLY.
It's better to refuse one drink than to risk a life.

 Observe
 Assess
 Trust your judgment
 Refuse the next pour

 **YOU MAKE MONTANA SAFER.**

 **CertReady™**

 **RESPONSIBLE SERVICE.
STRONGER COMMUNITIES.**

MT-ALCOHOL-M03-s2-c2.png

Outcomes: K4, P1

S2-C3 ? LIST

Physical cues

- **Glassy, bloodshot, or droopy eyes** — pupils may also dilate or react slowly to changes in light.
- **Unsteady walk** — bumping into chairs, grabbing the bar to balance, missing a stool when sitting down.
- **Slow or uncoordinated hand movement** — spilling drinks, fumbling cash, dropping a phone, struggling to grip a beer mug.
- **Flushed face or sweating disproportionate** to the room temperature.
- **Strong smell of alcohol** on the breath or coming from the body — present even when they're not drinking right then.
- **Falling asleep at the bar** — a customer who is dozing or 'micro-napping' between sips is past the cut-off line.

Outcomes: K4, P1

S2-C4 ? CALLOUT

One sign isn't enough; a pattern is. A single bloodshot eye could be allergies. A loud laugh could be enthusiasm. The Montana 'apparent' standard is met when **several cues stack**: slurred speech AND unsteady walk, or loss of inhibition AND glassy eyes AND repetitive talking. Train yourself to look for the cluster, not the single tell.

Outcomes: K4

S2-C5 ? LIST

Early-warning cues (the 0.05–0.07 band)

- Customer becomes more talkative, leans further forward, makes more direct eye contact.
- Decision-making gets sloppier — orders the most expensive bottle, agrees to a bar tab they wouldn't agree to sober.
- Slight delay between question and answer — they're processing slower even though they sound coherent.
- Touches their face, hair, or the bar more often (small motor restlessness).
- These customers are not legally over-served yet. The early-warning cues are the moment to slow down rather than continuing pace.

Outcomes: P1

S2-C6 ? CALLOUT

Tolerance hides the visible cues, not the impairment.

- A regular at **0.18 BAC** may show none of the slurring, stumbling, or eye-glassiness.
- Their motor cortex has trained around the alcohol — the surface signs disappear.
- Their judgment, reaction time, and impairment are still compromised at the same BAC.
- If you poured **6+ standard drinks** into a 200 lb customer in 2 hours, the BAC math is fixed — regardless of how steady their walk looks.

For service decisions, do not rely on "he looks fine" if drink count, pace, or behavior suggests impairment. (Civil dram-shop liability has its own statutory triggers under MCA 27-1-710 — covered in Module 6.)

Outcomes: K4

The customer who arrives already drunk

S3-C1 ? TEXT

Not every over-service problem starts at your bar. A customer who walked in from another establishment, a wedding reception, or a private party may already be in the 0.13–0.20 band before they order their first drink from you. **Montana law (MCA 16-3-301(4)(b)) does not require you to know they drank elsewhere.** It just requires you not to serve them while they meet the actual / apparent / obvious standard. Showing up impaired is on them; pouring the next drink is on you.

Outcomes: K4, P1

S3-C2 ? CALLOUT

The bar-hopping reality. A bachelor party, a sports-team celebration, or a wedding reception will often arrive at your bar after 60–120 minutes of drinking elsewhere. Posture-check the group as they walk in: are anyone's eyes already glassy, anyone unsteady, anyone overly loud? **The first 90 seconds at the door are the cleanest moment to refuse.** Once you've poured a round, refusing the second is harder. Train your hostess and door staff to flag the group to the bartender before drinks land.

Outcomes: P6

S3-C3 ? TEXT

Refusing the first drink. Refusing someone who has not ordered yet feels weirder than refusing a fourth pint. Use simple language: "I'm not going to be able to serve you alcohol tonight, but the kitchen's open and water's on me." The tone is neutral. You're not making a moral judgment, you're describing what's going to happen. If they push back, the answer is the same: "Tonight isn't going to work for alcohol — kitchen's open, water's on me." Repeat. Do not get drawn into a debate about how much they've had elsewhere.

Outcomes: P6

Intervention before refusal

S4-C1 ? TEXT

Refusing service is the **last** step in a chain of choices. Before you cut someone off, you have several intervention tools that often work. Most customers respond well to friendly slowdowns when they feel the bartender is looking out for them rather than judging them. The intervention ladder below is the standard TIPS / ServSafe Alcohol model with Montana-specific tweaks.

Outcomes: P6

S4-C2 ? LIST

The intervention ladder

- **Slow down.** Stop checking back as fast. The next round 'takes a while.' Restock something. Take 5 extra minutes between visits to the table.
- **Switch.** Offer a non-alcoholic option. Water with lemon, a soda, a coffee, an N/A beer. Frame it as a favor: "Let me grab you a water in between, this round's a stronger pour."
- **Food.** Appetizers slow absorption and reset the conversation. "Kitchen's still open — want me to grab you wings or fries?"
- **Refuse.** A clean, kind, non-debate refusal of the next pour: "I'm going to switch you to water for the rest of tonight."
- **Document.** Write the refusal and any incident in the house incident log. The log protects the licensee under MCA 27-1-710 if there is ever a dram-shop claim.

Outcomes: P6

S4-C3 ? TEXT

Reading the room before you escalate. Before stepping up the ladder, take 30 seconds to gauge the rest of the table. Are friends signaling concern? Is the customer in a celebratory or a self-medicating mood? Are there kids nearby? Is the manager available if things turn? The right step on the ladder depends on the social context, not just the BAC. A wedding party that's having a good time responds well to step 1 (slow down) and step 3 (food). A grieving solo customer at the bar may need step 4 (clean refusal) immediately, with the manager on standby.

Outcomes: P6

S4-C4 ? LIST

Refusal scripts that work (and the ones that backfire)

- **Works:** "I'm going to switch you to water for a bit. I want to make sure you get home okay." — Caring, future-oriented, gives the customer a soft exit.
- **Works:** "Kitchen's still open — let me get you the burger. I'll bring water with it." — Reframes the situation around food, slows the next drink without sounding like a refusal.
- **Works:** "Tab's at \$X. Let me close you out tonight and we'll catch you next time." — Polite finality. Use after the soft-touch attempts haven't landed.
- **Works:** "Mind if I call you a Lyft? On us." — Specific, no-friction, removes the only barrier most people raise.
- **Backfires:** "You've had enough." — Judgmental. Triggers defensiveness. The customer will argue.
- **Backfires:** "I can't serve you anymore." — True, but flat. Doesn't offer a path forward.
- **Backfires:** "Are you okay to drive?" — Open-ended question gets "yeah, I'm fine" 90% of the time. Substitute a specific offer instead.
- **Backfires (and risky):** "You're cut off!" said loudly across the bar — Public shaming escalates. The same message at table-side in a normal voice works fine.

Outcomes: P6

S4-C5 ? TEXT

The 30-second rule. When you decide to intervene, do it within 30 seconds of the trigger moment. A delay of even a minute makes it harder: the customer's tab grows, neighboring customers get drawn into the situation, and you start second-guessing yourself. The intervention is most effective when it's fast and conversational. The customer barely notices it's happening — they just notice that you set down a water glass and never came back for the next drink order. That's the goal.

The 'I' frame. Lead with "I" not "you." "I'm going to slow down on that next pour" lands far better than "You shouldn't have another one." The 'I' frame keeps the customer's ego out of it; the 'you' frame puts it center stage. Same outcome, very different reception.

The 'we' frame for groups. If the customer is in a group and the group is also drinking, address the group: "Let me get you all some water and the menu — I've got a great post-drinking dessert tonight." The customer who's over-served gets the same de-escalation without being singled out. Groups self-regulate when you give them a reason to.

Outcomes: P6

Refusing cleanly

S5-C1 ? SCENARIO

Scenario 1: The friendly regular. A regular customer at the bar is on her fourth pint of a 7% Montana craft pale ale (so about 5.6 standard drinks over 2 hours). She's slurring slightly, getting louder, and asking for a fifth. She has a tab open. She is friendly with you. She catches your eye and smiles.

What is the right next step?

Options

1. **a.** Pour the fifth. She's a regular and you don't want to embarrass her.
2. **b.** Lean in and quietly say: 'I'm going to switch you to water for a bit. I've got you. Can I bring some bread?'
3. **c.** Tell her loudly across the bar: 'You're cut off!'
4. **d.** Pretend you didn't hear and walk away.

Outcomes: P6, K4

S5-C2 ? LIST

Refusal scripts that work

- "I'm going to switch you to water for a bit. I want to make sure you get home okay."
- "I can't pour you another one tonight. Can I call you a Lyft? It's on us."
- "That's the law on me, not on you. I want to keep my license. Soda for the rest of the night?"
- "Tonight isn't going to work for alcohol. Kitchen's open and water's on me. Want to see the menu?"

Outcomes: P6

S5-C3 ? SCENARIO

Scenario 2: The friend trying to order around the cut-off. You've just cut off a customer at a four-top. One of his friends slides up to the bar and orders "another round for the table" with the cut-off customer's drink included. She doesn't make eye contact and slides her credit card across.

What's the right call?

Options

1. **a.** Pour the round. She's the one ordering, not him.
2. **b.** Pour drinks for everyone except the cut-off customer. "I can serve the table — minus your friend who's switched to water."
3. **c.** Pour the round but tell her to drink it herself. "I served you, what you do with it is your problem."
4. **d.** Refuse the entire round and ask the table to leave.

Outcomes: P6, K4

S5-C4 ? SCENARIO

Scenario 3: The customer who got angry. You've just refused a fifth pour to a 240-pound male customer. He stands up, leans toward you, and says loudly, 'Are you serious? I'm fine. Pour the damn drink.' Other customers at the bar are watching.

What's the right call?

Options

1. **a.** Pour the drink to defuse the situation.
2. **b.** Stay calm, keep your voice low. 'I hear you. I'm still going to switch you to water tonight. Want me to grab the manager so you can talk to her?' Signal the manager with your eyes.
3. **c.** Tell him to get out of the bar.
4. **d.** Argue back loudly so other customers see you're right.

Outcomes: P6

S5-C5 ? CALLOUT

The 911 trigger. A BAC above **0.30** is a medical emergency, not a service problem.

Signs that put a customer in this band:

- Unable to stay upright
- Semi-conscious or unresponsive
- Slow or shallow breathing
- Blue-tinged lips
- Vomiting while semi-conscious

The right call is 911. NOT:

- A Lyft home
- "Sleeping it off" in a booth or the parking lot
- Walking them outside for fresh air

The risk doesn't necessarily end when the customer leaves. If the bar furnished alcohol in a way that meets one of MCA 27-1-710's statutory triggers, a later injury or death can still lead to a dram-shop claim.

Outcomes: P6

Documenting refusals and incidents

S6-C1 ? CALLOUT

Document the refusal. Most house policies require an incident-log entry every time you refuse service or have to escalate. The log creates the paper trail that protects the licensee under **MCA 27-1-710** if there is ever a dram-shop claim. A refusal you didn't write down is, for litigation purposes, a refusal that didn't happen.

Outcomes: P6

S6-C2 ? LIST

What to log on every refusal

- **Date and time** of the refusal.
- **Customer description** (gender, approximate age, what they were wearing, where they sat).
- **Cues observed** (slurred speech, glassy eyes, etc.) — the specific cluster, not just "intoxicated."
- **What you offered** (water, food, ride home, manager intervention).
- **What happened next** — they accepted, they argued, they left, the manager took over.
- **Your signature or initials** plus the manager's if they got involved.

Outcomes: P6

S6-C3 ? TEXT

How the log saves the bar. Within **180 days of the alleged sale or service**, a plaintiff's lawyer may send certified-mail notice of a dram-shop claim under **MCA 27-1-710**. The notice will name the bar, name the customer, and allege over-service on a specific date — and may ask for the incident log, training records, surveillance video, and receipts from that night.

Outcomes: P6

S6-C4 ? LIST

Without the log vs. with the log

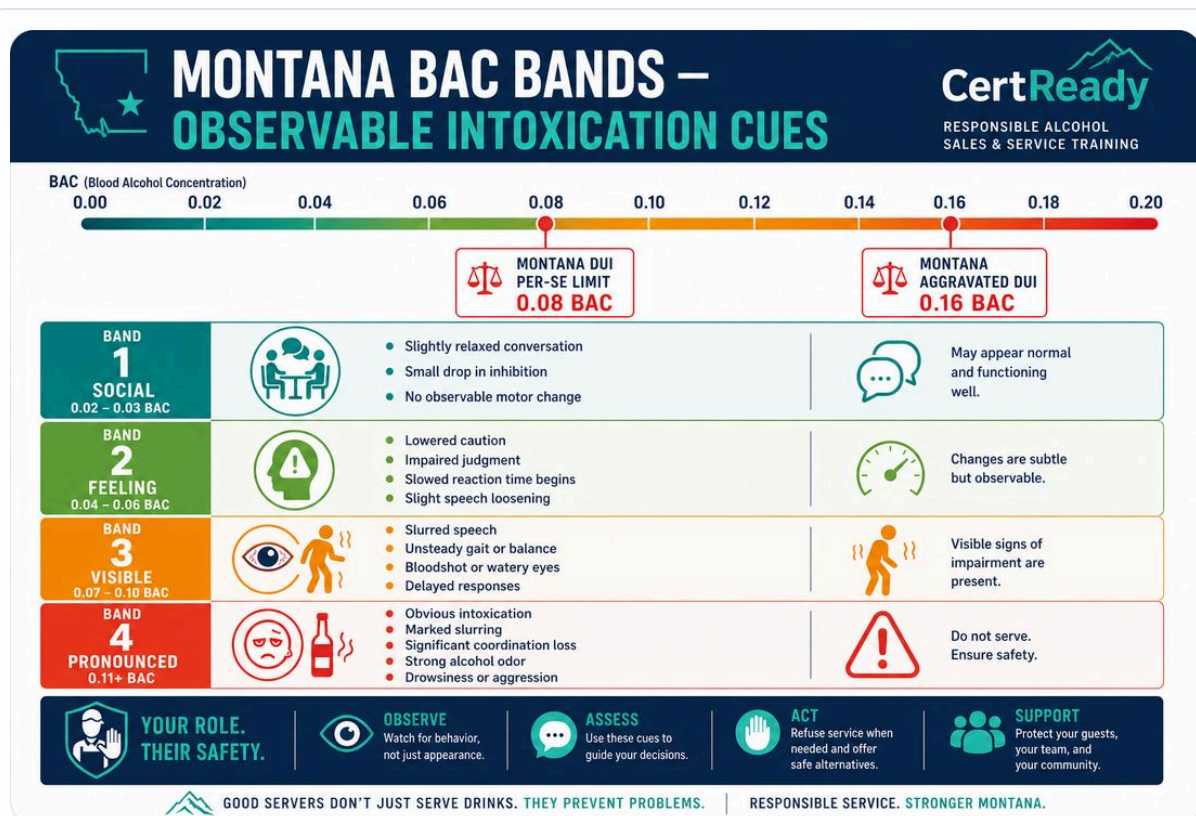
- **Without the log:** the licensee is reconstructing the night two years later from memory. The plaintiff's version becomes the default narrative.
- **With the log:** the licensee shows a contemporaneous record — "we served them at 7 PM, cut them off at 9:15 PM, offered water and a Lyft, customer left in a Lyft at 9:45 PM."
- Montana courts expect a responsible-service program to keep this audit trail. The log is what separates a defensible refusal from a he-said-she-said.

Outcomes: P6

Behavioral cues, eye signs, and the BAC-band timeline a Montana server should know cold

S9-C1 ? TEXT

The BAC bands and what they look like at the bar. A 0.02–0.03 BAC band is the 'social loosening' band — slightly relaxed conversation, a small drop in inhibition, no observable motor change. A 0.04–0.06 band is the 'feeling it' band — louder, friendlier, slight reduction in fine motor control (the pour-cup-to-mouth motion gets a little less precise). A 0.07–0.10 band is the 'visible impairment' band — slurred speech is now apparent to a sober observer, balance becomes noticeably affected, judgment is measurably worse. Above 0.10 the cluster gets unmistakable: pronounced slurring, swaying, glassy and bloodshot eyes, difficulty completing basic motor tasks like counting cash or unlocking a phone screen. **Montana's apparent-intoxication standard under MCA 16-3-301(4)(b) and MCA 16-6-304 is calibrated to the 0.07-and-above bands** — a server who can describe two or three cues from those bands has met the legal standard for refusal. The 0.02–0.06 bands are not, by themselves, refusal-triggering, but they are the bands where the slowing-service playbook from Module 2 should be deployed: water, food, slower pour, smaller portions. The goal is to keep the table from crossing into the 0.07+ band where refusal becomes mandatory.



MT-ALCOHOL-M03-s9-c1.png

Outcomes: K4, P1

S9-C2 ? CALLOUT

Eye signs — the cluster that's hard for a customer to hide. Behavioral cues like slurring and swaying are what most servers learn to spot first, but **eye signs are the cluster most resistant to a practiced 'I'm fine' performance.** Three to watch for at the bar: (1) **horizontal gaze nystagmus** — when the customer tracks your finger from side to side at arm's length, the eyes jerk involuntarily once they cross about 45° from center. The jerking gets more pronounced with rising BAC. (2) **Lack of convergence** — ask the customer to focus on the tip of a pen brought slowly toward the bridge of their nose; at 0.08+ many drinkers can't bring both eyes to converge on the close point. (3) **Bloodshot or glassy appearance** with pupil sluggishness — pupils slow to constrict against the bar's overhead lighting, and the white of the eye reddens. **Servers should not perform any of these tests on a customer; they are observations to make passively as the customer presents themselves at the bar.** Mentioning them on a refusal log strengthens the contemporaneous-observation record substantially: 'eyes bloodshot, slow pupil response, did not track when paying tab' is a much stronger record than 'looked drunk.'

Outcomes: K4, P1

S9-C3 ? TEXT

The 'rate-of-rise' tell. A customer's BAC doesn't move at the same rate all night. The first drink hits absorption fastest on an empty stomach; subsequent drinks against partially-digested food absorb more slowly. **What this means at the bar:** the customer who looks 'fine' at the 90-minute mark may be at a much higher BAC than they were 30 minutes earlier, because alcohol consumed earlier is still being absorbed even after they stop ordering. Servers who treat a customer's apparent state as a flat reading miss the curve. Two practical implications: (1) **Last call doesn't end the BAC rise** — a customer who ordered their last drink at 1:55 AM may be at peak BAC at 2:30 AM, well after they've left the bar. (2) **The 'they seem okay so I'll pour one more' decision often produces the catastrophic case** — the BAC curve from that one more drink rises for 30–45 minutes after consumption, often after the customer has left the premises. The cleanest discipline is to refuse two rounds before the curve crests, not at the crest. The refusal log entry from that proactive refusal is also the most defensible artifact under MCA 27-1-710's three-trigger framework: 'visible intoxication at the time of service' is a backward-looking standard, and a refusal entered while the customer is still inside the bar locks in your observation in real time.

Outcomes: K4, P6

Module 3 Quiz

Passing score: 80%

Q1 ? MULTIPLE_CHOICE

Which phrase does Montana law (MCA 16-3-301(4)(b)) use as the over-service test?

Options

1. a. 'Visibly intoxicated' only
2. b. 'Actually, apparently, or obviously intoxicated' **Correct**
3. c. 'Unable to consent'
4. d. 'BAC over 0.08'

Correct answer: b

Outcomes: K4

Q2 ? MULTIPLE_CHOICE

A regular customer at 0.18 BAC has 'trained' herself not to slur. Under Montana's three-prong standard, can you serve her?

Options

1. a. Yes, because the 'apparent' prong isn't met
2. b. No — she's 'actually' intoxicated even if not visibly **Correct**
3. c. Yes, because she's a regular and tolerance is a defense
4. d. Only if she signs a liability waiver

Correct answer: b

Outcomes: K4

Q3 ? MULTIPLE_CHOICE

Which is NOT typically a behavioral cue of intoxication?

Options

1. a. Slurred speech
2. b. Repeating the same story
3. c. Asking for a glass of water **Correct**
4. d. Loud, overly familiar behavior

Correct answer: c

Outcomes: P1

Q4 ? MULTIPLE_CHOICE

What is the FIRST step on the intervention ladder, before refusal?

Options

1. a. Slow down the next pour or check-back **Correct**
2. b. Call the police
3. c. Throw them out
4. d. Refuse to make eye contact

Correct answer: a

Outcomes: P6

Q5 ? MULTIPLE_CHOICE

You've cut off a customer. His friend slides up and orders a round 'for the table' that includes the cut-off customer's beer. What's the right call?

Options

1. **a.** Pour the round — she's the one ordering and paying
2. **b.** Pour drinks for everyone except the cut-off customer; substitute water **Correct**
3. **c.** Refuse the entire round and ask the table to leave
4. **d.** Pour the round but tell her not to share

Correct answer: b

Outcomes: P6, K4

Q6 ? MULTIPLE_CHOICE

A customer becomes semi-conscious at the bar with slow, shallow breathing and bluish lips. What's the right call?

Options

1. **a.** Call them a Lyft and send them home
2. **b.** Let them sleep it off in a booth
3. **c.** Call 911 — this is a medical emergency **Correct**
4. **d.** Walk them to the parking lot for fresh air

Correct answer: c

Outcomes: P6

Q7 ? SHORT_ANSWER

Write a one-line refusal script you would use on a regular customer who has had too much, in a way that lets them save face.

Accepted keywords: water, switch, Lyft, ride, home, law, license, soda, switching, make sure, tonight, got you

Outcomes: P6

Module 04: Checking Identification (Including Digital IDs)

Montana's acceptable ID list per ARM 42.13.902, with HB 196 digital IDs and tribal IDs

Estimated time: 20 minutes

Learning outcomes

- **K5:** Acceptable forms of identification in Montana (ARM 42.13.902)
- **K6:** Strategies underage persons use to obtain alcohol (ARM 42.13.907(1)(d))
- **P2:** Calculate the latest valid DOB for a legal sale today (ARM 42.13.907(1)(c))
- **P3:** Inspect a Montana driver's license (ARM 42.13.902)
- **P4:** Verify a government-certified digital ID per HB 196 (MCA 16-4-1006(1)(c) (HB 196))

The Montana acceptable-ID list

S1-C1 ? TEXT

Montana **ARM 42.13.902** lists exactly which IDs you may accept to verify age. **The list is closed.** If the customer hands you something that isn't on the list, you don't accept it — even if it has a photo, a DOB, and looks official.

Outcomes: K5

S1-C2 ? LIST

Acceptable forms of ID under ARM 42.13.902

- **Current state-issued or Canadian driver's license or ID card** — any US state or Canadian province. Must be unexpired.
- **Current armed-services ID card** — active duty, reserve, retired, or dependent military ID issued by the DoD.
- **Valid US passport or US passport card** — both work; the wallet-sized passport card is fully acceptable.
- **Valid Montana temporary driver's license or temporary ID** — the paper interim issued while the permanent card is mailed.
- **Valid Montana probationary driver's license** — typically held by drivers age 15–18; verify the DOB carefully.
- **Valid Montana tribal identification** — issued by any of the seven federally recognized Montana tribes (see next chunk).
- **Current US permanent resident card** (Form I-551 / 'green card') — federally issued credential showing photo, date of birth, and valid expiration.
- **Government-certified digital ID** — added by HB 196, effective October 1, 2025. State-issued credential held in an official wallet or state-approved app.



MONTANA ACCEPTABLE ID FOR ALCOHOL SALES & SERVICE



ACCEPTABLE FORMS OF ID UNDER ARM 42.13.902

The following forms of identification are acceptable if they are valid, unexpired, and contain a physical description of the individual.

1 MONTANA DRIVER'S LICENSE ✓ Montana driver's license issued by the Motor Vehicle Division.	2 CANADIAN DRIVER'S LICENSE ✓ Driver's license issued by a Canadian government authority.	3 MILITARY ID ✓ Active duty, retired, or dependent military identification card.	4 US PASSPORT BOOK + CARD ✓ U.S. passport book or U.S. passport card.	5 MONTANA TEMPORARY LICENSE ✓ Temporary license issued by the Motor Vehicle Division.
6 PROBATIONARY LICENSE ✓ Probationary license issued by the Motor Vehicle Division.	7 TRIBAL ID ✓ Tribal identification card issued by a Montana recognized tribe.	8 US PERMANENT RESIDENT CARD / I-551 ✓ U.S. Permanent Resident Card (Green Card), Form I-551.	9 DIGITAL ID IN AN OFFICIAL WALLET ✓ Digital ID presented in an official digital wallet app.¹	10 OTHER ID? NOT ON THE LIST. ✗ If it's not on this list, it's not acceptable for alcohol sales or service.



CHECK EVERY TIME

- ✓ ID is valid and unexpired
- ✓ Physical description matches the individual
- ✓ ID is intact and not altered
- ✓ You have the ID in hand (or presented digitally)

When in doubt, check it out!



LOOK FOR WARNING SIGNS

- Expired or temporary paper that is altered
- Photo doesn't match the person
- Damaged ID or missing security features
- Hesitation or unusual behavior
- Use your training and good judgment.



IF IN DOUBT, REFUSE

- You have the right—and the responsibility—to refuse a sale or service if:
- The ID is not acceptable
 - You can't verify the ID
 - You believe the ID is fake or altered
 - The person is under 21
- It's better to lose a sale than your license.

WHY IT MATTERS

Following the law protects your business, your community, and your future.

Responsibility makes a difference.

RESPONSIBLE SERVICE. STRONG COMMUNITIES. SAFER MONTANA.

¹ Official digital wallet must be issued by a state or federal government and meet security standards.

This infographic is for training purposes only and does not replace state law.

MT-ALCOHOL-M04-s1-c2.png

Outcomes: K5

S1-C3 ? CALLOUT

Montana tribal IDs — the seven federally recognized tribes:

- Blackfeet Nation
- Chippewa Cree (Rocky Boy's Reservation)
- Confederated Salish & Kootenai (Flathead Reservation)
- Crow Tribe
- Fort Belknap Indian Community (Assiniboine & Gros Ventre)
- Fort Peck (Assiniboine & Sioux)
- Northern Cheyenne

A tribal ID issued by any of these tribes is acceptable under ARM 42.13.902. Out-of-state tribal IDs are NOT on the list — only IDs issued by federally recognized tribes located in Montana count.

Outcomes: K5

S1-C4 ? CALLOUT

MCA 16-4-1006(1)(c) (HB 196): Curriculum must cover procedures for checking identification, including government-certified digital identification cards. Falsifying or fraudulently using a digital ID is a separate offense under **MCA 16-6-305** (also amended by HB 196).

Outcomes: K5

S1-C5 ? CALLOUT

What is NOT on the list:

- School / college / university ID cards
- Library cards
- Costco, Sam's Club, or other warehouse-club cards
- Voter registration cards
- Birth certificates (no photo)
- Photocopies or photos of any of the above
- Expired ID of any kind
- Out-of-state tribal IDs

If the customer offers any of these, you must refuse. "It's all I have" is not a valid reason to make an exception.

Outcomes: K5

How to inspect a physical ID

S2-C1 ? LIST

The check sequence

- **Take it in your own hand.** Don't read it through a wallet, phone case, or laminated holder. You need to feel the card.
- **Look at the photo.** Match the person's hairline, ear shape, eye spacing, and jaw to the picture. Hair color and style change; bone structure does not.
- **Calculate the date of birth.** Today's date minus 21 years is the line. If the DOB is later, the customer is under 21.
- **Check the expiration date.** An expired ID is not acceptable. Refuse cleanly: "This expired in March, I can't use it tonight."
- **Feel the card.** Real cards have uniform thickness, sharp corners, no peeling lamination, no bubbles.
- **Tilt it.** The holographic state seal or security overlay should shift in the light. Flat, printed-on holograms are a fake-ID tell.
- **Cross-check with a question.** "What's your zip code?" or "What's the middle name?" should be instant. A real owner doesn't pause to think.

Outcomes: P3, P2

S2-C2 ? CALLOUT

The DOB math, made easy.

- Subtract 21 from the current year.
- Use today's month and day.
- Anyone whose DOB is **after** that date is under 21.

Example for May 8, 2026: the cutoff DOB is **May 8, 2005**. Born May 8, 2005 or earlier = legal. Born May 9, 2005 or later = under 21.

Outcomes: P2

S2-C3 ? CALLOUT

The vertical-vs-horizontal layout tell. Most US states issue licenses in **horizontal layout for adults (21+)** and **vertical layout for minors (under 21)** so a glance at orientation tells you the holder is provisionally underage. Montana follows this convention. **Vertical license = check the DOB even more carefully.** A horizontal license held by someone who looks young still gets the full inspection — but a vertical license should never be served without confirming the customer crossed 21 since the card was issued.

Montana Driver's License Orientation Check

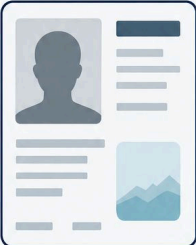
Horizontal (21+) vs Vertical (Under 21)

A quick glance at card orientation tells you the holder's age category

**HORIZONTAL CARD**
21 OR OLDER

**VERTICAL CARD**
UNDER 21

**OVER 21**



VS

 **Landscape orientation**
Wider than it is tall

 **OVER 21 indicator**
Prominent band across the top

 **Instant tell**
Horizontal layout = 21 or older

 **Portrait orientation**
Taller than it is wide

 **No OVER 21 band**
Absence of the green indicator

 **Instant tell**
Vertical layout = Under 21

**HORIZONTAL**
21 OR OLDER
Look for the landscape layout and **OVER 21** band.



**VERTICAL**
UNDER 21
Look for the portrait layout with **no** green band.

 **PRO TIP** When in doubt, check the orientation first. It's the fastest way to determine the holder's age category.

CertReady

MT-ALCOHOL-M04-s2-c3.png

Outcomes: P3

Checking digital IDs (HB 196)

S3-C1 ? TEXT

A government-certified digital ID is a state-issued credential the customer holds in their phone — Apple Wallet, Google Wallet, or a state-specific app. **It is NOT a screenshot of a license.** It is NOT a third-party app like ID.me. Only a government-issued digital credential counts under HB 196.

Outcomes: P4, K5

S3-C2 ? LIST

Digital ID check sequence

- **Ask the customer to present the credential through the official wallet or government-approved app** — not a screenshot or photo. The official presentation is interactive (the live credential responds to your verification step); a static image won't work.
- **Look for the official state seal** or the issuing state's logo. Generic 'license' icons are not acceptable.
- **Confirm the photo matches** the person. Same rules as physical ID: bone structure, ear shape, eye spacing.
- **Read the date of birth** and apply the same DOB math.
- **Check expiration.** The digital credential expires when the underlying physical ID does.
- **If the customer hands you their unlocked phone** instead of presenting the credential, ask them to present it properly. A phone screen showing a website is not a digital ID.

Outcomes: P4

S3-C3 ? CALLOUT

Falsifying a digital ID is a separate offense under MCA 16-6-305 (HB 196 amendment). Penalties stack on top of the underlying minor-in-possession charge.

If you suspect a fake digital ID:

- Refuse the sale.
- Document the incident in the log.
- Don't try to seize the phone or take a screenshot.
- Call the manager.

Outcomes: K5, K6

S3-C4 ? TEXT

Why Montana adopted digital IDs slowly. Many states moved on digital credentials in 2020–2022; Montana waited until HB 196 in 2025 in part because of a concern about handing servers a phone they couldn't fully inspect. The compromise the bill landed on: only **government-certified credentials** count, presented through the **official wallet application** (Apple Wallet, Google Wallet, or the state app). A screenshot or a photo of a license is explicitly NOT a digital ID under the rule. This matches how TSA and other regulated industries treat the same technology.

A few practical implications for the server:

- Don't accept a digital ID presented through a third-party app (e.g., "a wallet I built" or a generic image gallery). The credential must come from the wallet app or the state's own app.
- If the customer is having trouble pulling up the credential, that is fine — give them time. The slow-presentation pattern is a known anti-fraud feature; legitimate digital IDs sometimes require a biometric prompt before they display.
- Always present the verification mode (the wallet may flip the credential to a verifier view with extra security graphics). If you don't see a verifier view, the credential is not properly presented.

Outcomes: K5, P4

S3-C5 ? TEXT

The DOB-math shortcut and the mistakes to avoid. The calculation is simple — today's date minus 21 years — but two common errors trip up new servers:

Mistake #1: Forgetting the month/day. If today is May 8, 2026, the latest valid DOB is May 8, 2005. A DOB of May 9, 2005 means the customer is 20 years, 364 days old — under 21. New servers sometimes only check the year ("2005, so they're 21!") and miss the month/day. Always read all three parts of the DOB.

Mistake #2: Trusting the customer's stated age. Customers will sometimes volunteer "I'm 22" or "I just turned 21 last month" to short-circuit the check. Ignore it. Do the math from the DOB on the ID. The customer's stated age is not a credential.

A useful daily ritual: at the start of every shift, write today's cutoff DOB on a sticky note at the bar station. "Today's cutoff: May 8, 2005. DOBs ON or BEFORE this date are 21+." After a few shifts you'll do the math automatically, but the sticky note prevents end-of-night errors when fatigue makes mental math slippery.

The leap-year edge case. If a customer's DOB is February 29, the legal age cutoff applies on February 28 in non-leap years and February 29 in leap years. Most state IDs simply treat the person as having a birthday on March 1 in non-leap years for administrative purposes, but if you ever see a February 29 DOB and today is February 28 or 29 of a non-leap year, take an extra moment to verify with a supervisor before serving.

Outcomes: P2, P3

Spotting fakes

S4-C1 ? LIST

Red flags on physical IDs

- **Lamination peeling** or bubbling at the edges
- **Photo doesn't match** (different ear shape, eye spacing, hairline that wouldn't change with age)
- **Holographic seal looks flat** or printed instead of shifting in the light
- **Customer hesitates or panics** when asked their zip code, middle name, or DOB
- **Out-of-state ID** for someone whose accent or other details don't match the state
- **Card feels too thin or too thick**, or has rounded corners that should be sharp
- **Two friends hand over IDs** and look at each other for the answers to your follow-up questions
- **Vertical ID** held by someone who claims to be 25+ — vertical IDs are issued to under-21 holders

MONTANA RASS TRAINING

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ALCOHOL SALES &
SERVICE TRAINING

TWO OR MORE TELLS STACKING = REFUSE + DOCUMENT
Protect your license. Protect your business. Protect your community.

1

Peeling or bubbled lamination at the card edges

2

Photo doesn't match the customer's bone structure, ear shape, or hairline

3

Hologram is flat/printed-on (doesn't shift in the light when tilted)

4

Vertical layout (under-21 format) on a card claiming an adult DOB

5

Soft or rounded corners inconsistent with a real DMV-issued card

6

Inconsistent card thickness or visible seam at the edge

7

Misspellings, font mismatches, or wrong-state design elements

8

Customer hesitates or stumbles when asked their own zip code or address

KNOW THE STANDARDS

Fake IDs are not always obvious. Stay observant. Use multiple ID checks every time.

CHECK • TILT • VERIFY

CHECK: Carefully inspect all ID details
TILT: Check holograms and security features
VERIFY: Confirm with the customer when appropriate

COMMON OUTCOMES

78% Legitimate IDs
16% Needs More Verification
6% Refuse / Document

Industry data shows most IDs are legitimate—but vigilance matters.

REFUSE
If you spot two or more red flags, REFUSE the sale and DOCUMENT the interaction.
 DOCUMENT

You have the right—and the responsibility—to refuse service. It's your best protection.

Montana law supports servers who make the right call.

MT-ALCOHOL-M04-s4-c1.png

Outcomes: P3, K6

S4-C2 ? CALLOUT

The two-friends pattern. When two underage friends use a shared fake-ID pipeline, they often have rehearsed answers for the obvious questions (DOB, zip code) but **fail on the second-tier questions:** "What's the middle name?" or "What's your sister's name?" The pause-and-look-at-friend tell is a high-confidence fake-ID signal even when the card itself looks decent.

Outcomes: P3, K6

Common minor tactics

S5-C1 ? LIST

Tactics underage customers use

- **The borrowed older sibling.** Underage customer borrows a 21+ sibling's real ID. Photo is close but not exact; ask the second-tier questions.
- **The bathroom-pass swap.** A 21+ friend orders, then passes the drink to the underage friend in the bathroom or at a side table.
- **The proxy buyer at the door.** A stranger or older friend offers to walk in and buy for the under-21 group hanging outside.
- **The 'I left my ID in the car' move.** Customer says their ID is at the car, you let them in, they don't go back. No ID, no service — period.
- **The crowd-rush.** A group of 4–6 enters together; the door staff scans the front of the line and waves the back through. Each person gets ID-checked, no exceptions.
- **The fake-ID ring.** Mass-produced fakes from a single source. Often share a typeface, the same hologram pattern, the same 'state' for an out-of-state ID. If you see a second one in a week with the same odd font, the manager should know.

Outcomes: K6

S5-C2 ? CALLOUT

The bathroom-pass watch. Walk the floor. If the same customer keeps ordering drinks but never has them in front of them when you swing back, follow the drink. The pass-off to a minor is the most common after-the-fact dram-shop violation in college towns. Document the moment you see the drink change hands.

Outcomes: P6

Refusing at the door, cleanly

S6-C1 ? TEXT

Refusing an ID at the door is the lowest-friction refusal in alcohol service. The customer hasn't ordered yet. There's no tab to dispute, no half-finished drink to take away. **Get good at this and most of your refusal work is done before service starts.**

Outcomes: P6

S6-C2 ? LIST

Door-refusal scripts

- **Expired ID:** "This expired in March — I can't take it tonight. Got anything else?"
- **Not on the acceptable list:** "School IDs aren't on Montana's list. I need a driver's license, passport, or military ID."
- **Suspicious fake:** "I'm not able to verify this one tonight. Sorry." Hand it back, do not seize it. Document.
- **Photo doesn't match:** "The photo doesn't match — I can't verify this is you. Got another ID?"
- **ID in the car:** "No ID, no entry. We'll be here when you come back with it."

Outcomes: P6

S6-C3 ? CALLOUT

Don't seize a suspected fake ID. Hand it back. Some bouncers grab the card and say "I'm keeping this." Keeping a suspected fake ID can create legal risk, including a possible property claim. The safer course is to hand it back, refuse, and document.

- Hand the ID back.
- Refuse entry / refuse service.
- Document description, time, ID details (state, ID number, name).
- Note the description of the customer for a possible police report.

Let law enforcement decide what happens to the card — that's not the bartender's job.

Outcomes: P6

Two scenarios you'll see at the door

S7-C1 ? SCENARIO

Scenario 1: The DOB math. A customer hands you a Montana driver's license. Photo matches the person. The DOB shows 03/15/2005. Today is May 8, 2026.

What is the customer's age, and can you serve them?

Options

1. **a.** 21 years old; serve them.
2. **b.** 20 years old; refuse.
3. **c.** Refuse to verify because the year (2005) is the cutoff year.
4. **d.** Ask for a second form of ID just in case.

Outcomes: P2, P3

S7-C2 ? SCENARIO

Scenario 2: The digital ID that looks off. A customer presents a digital ID in Apple Wallet. The state seal is from Wisconsin. The photo is small and blurry. When you ask them to TAP to present, they say "it's loading" and just hold the static screen toward you.

What's the right call?

Options

1. **a.** Refuse the sale, hand the phone back, document.
2. **b.** Accept it because Apple Wallet is government-certified.
3. **c.** Take the phone and try to refresh the screen yourself.
4. **d.** Accept it but write it down for the manager later.

Outcomes: P4, P6

Out-of-state IDs, tribal IDs, and the edge cases that show up at a Montana bar

S8-C1 ? TEXT

The Montana on-premise bar sees a wider out-of-state distribution than the corner convenience store. Tourists driving up from Yellowstone and Glacier carry Wyoming, Idaho, Utah, Colorado, Washington, and Oregon licenses. Snowbird travelers heading to Big Sky carry Texas, Arizona, and California. Cross-border Canadian visitors carry Alberta, British Columbia, and Saskatchewan licenses. **All of these are acceptable under ARM 42.13.902 if current**, but each one has its own design quirks: the Idaho DL hologram sits in a different corner than the Montana one; the British Columbia license has its photo offset to the right; California now issues a federal-compliant card with a gold bear on the top right that is easily mistaken for a state seal. The single highest-leverage practice for on-premise staff is to spend a slow Tuesday afternoon studying actual current-design samples from each of the top 10 most-common out-of-state IDs you see. Print the reference cards, post them in the back hall, and reference them whenever a card you've never seen lands at the host stand. The 90-second study session is the cheapest insurance against an honest mistake that would otherwise produce a sale to a minor.

Outcomes: K5, P4

S8-C2 ? CALLOUT

Tribal IDs from Montana's seven federally recognized tribes are on the acceptable list under ARM 42.13.902. Blackfeet Nation, Chippewa Cree (Rocky Boy's), Confederated Salish & Kootenai (Flathead), Crow, Fort Belknap (Assiniboine & Gros Ventre), Fort Peck (Assiniboine & Sioux), and Northern Cheyenne all issue photo IDs that count as valid Montana ID for alcohol-purchase purposes. **The card design varies by tribe**, and a server who has only ever seen one tribe's card may not recognize another tribe's. Two practical notes: (1) **out-of-state tribal IDs are NOT on the Montana acceptable list** — a Navajo Nation ID issued in Arizona, for example, does not satisfy ARM 42.13.902 even though it is a valid federal-government-recognized credential; (2) tribal IDs are sometimes refused inappropriately by undertrained staff because the design looks unfamiliar. That refusal is a service-discrimination problem and can attract attention from tribal liaison offices and the Montana Human Rights Bureau. The right move when an unfamiliar tribal ID appears is to verify against the printed reference, accept if it matches one of the seven recognized tribes, and refuse with the standard refusal script only if it doesn't (e.g., out-of-state tribal ID, or a card whose issuer you cannot identify).

Outcomes: K5, P4

S8-C3 ? TEXT

The 'I work for the airline / I'm a doctor / I'm a state legislator' move. Periodically a customer will produce a credential that is not on the acceptable-ID list and ask you to accept it anyway: a TSA Known Traveler card, a state-bar attorney ID, a hospital staff badge, a US Capitol staff ID. **None of these are on ARM 42.13.902.** They may identify the person and they may show a photo, but the acceptable list is closed. Many of these credentials also do not show a date of birth at all, which means even if the design were acceptable, the DOB-verification step you need cannot be performed. The refusal script is the same as for any other off-list credential: 'Montana's list is specific — driver's license, passport, military ID, tribal ID, permanent resident card, or government-certified digital ID. I can't ring up alcohol on this one tonight.' Customers in this category sometimes escalate to the manager because the ask carries a status component; the manager's job is to back up the door staff, not to make exceptions. The progressive-penalty risk under ARM 42.13.101 does not change based on the customer's profession.

Outcomes: K5, P4

Module 4 Quiz

Passing score: 80%

Q1 ? MULTIPLE_CHOICE

Which of the following is NOT acceptable as ID under ARM 42.13.902?

Options

1. **a.** A current Canadian driver's license
2. **b.** A valid US passport card
3. **c.** A photocopy of the customer's driver's license **Correct**
4. **d.** A Montana tribal ID issued by a federally recognized Montana tribe

Correct answer: c

Outcomes: K5

Q2 ? MULTIPLE_CHOICE

What was added to Montana's acceptable-ID rules by HB 196 in October 2025?

Options

1. **a.** Government-certified digital ID cards **Correct**
2. **b.** School ID cards
3. **c.** Library cards
4. **d.** Voter registration cards

Correct answer: a

Outcomes: K5

Q3 ? MULTIPLE_CHOICE

If today is May 8, 2026, what is the LATEST DOB on a customer's ID that still makes them legal to serve?

Options

1. a. May 8, 2004
2. b. May 8, 2005 **Correct**
3. c. May 8, 2007
4. d. January 1, 2005

Correct answer: b

Outcomes: P2

Q4 ? MULTIPLE_CHOICE

A screenshot of a state ID on the customer's phone counts as a digital ID under HB 196.

Options

1. true. True
2. false. False **Correct**

Correct answer: false

Outcomes: P4

Q5 ? SHORT_ANSWER

Name two physical signs that an ID might be fake.

Accepted keywords: lamination, peeling, bubbling, hologram, thin, thick, rounded corners, photo, doesn't match, ear, hairline, bubble, vertical

Outcomes: P3, K6

Q6 ? MULTIPLE_CHOICE

If you suspect a digital ID has been falsified, what is the right immediate action?

Options

1. **a.** Call the police on the spot
2. **b.** Refuse the sale, hand the phone back, and document the incident in the log **Correct**
3. **c.** Confiscate the customer's phone
4. **d.** Accept it and flag for the manager later

Correct answer: b

Outcomes: P4, P6

Q7 ? MULTIPLE_CHOICE

A vertical-layout driver's license is typically issued to whom?

Options

1. **a.** Adults age 21 and older
2. **b.** Holders under age 21 **Correct**
3. **c.** Commercial drivers
4. **d.** Military personnel

Correct answer: b

Outcomes: P3

Q8 ? MULTIPLE_CHOICE

How many federally recognized tribes in Montana issue tribal IDs that are acceptable under ARM 42.13.902?

Options

1. a. 3
2. b. 5
3. c. 7 **Correct**
4. d. 10

Correct answer: c

Outcomes: K5

Module 05: Sales to Minors

ARM 42.13.101 progressive penalties, MCA 16-6-305, and the narrow private-setting carve-outs (nonintoxicating quantity only)

Estimated time: 10 minutes

Learning outcomes

- **K7:** ARM 42.13.101 progressive penalty schedule (ARM 42.13.101)
- **K8:** MCA 16-6-305 and its narrow family, medical, pharmacy, and religious-observance exceptions (nonintoxicating quantity only) (MCA 16-6-305)
- **P5:** Recognize that MCA 16-6-305(1)(a) does not authorize on-premise service to under-21 patrons even when a parent or guardian is present (the carve-out applies in private settings only) (MCA 16-6-305)

The general rule

S1-C1 ? CALLOUT

MCA 16-6-305(1): It is unlawful to sell, give, or otherwise provide alcoholic beverages to a person under **21 years of age**, except for the narrow statutory carve-outs covered below (provision in a nonintoxicating quantity by parent/guardian, medicinal provision by physician/dentist, pharmacist with prescription, or minister/priest in connection with religious observance). The statute does NOT authorize on-premise service to under-21 patrons; the carve-out applies in private settings only.

Outcomes: K8

S1-C2 ? TEXT

Selling to a minor is the single highest-risk error a server can make. Montana takes a progressive view: the licensee's penalty escalates with each offense in a 3-year window, and the server can be charged personally too.

Outcomes: K7

S1-C3 ? CALLOUT

What counts as an offense. Any of these triggers an entry on the licensee's record:

- A successful undercover compliance check (the Montana DOR or local police send a 19- or 20-year-old in with a real ID and you serve them)
- A documented sale to a minor that's later proven (often through an MIP arrest where the minor names the bar)
- A self-reported violation during a routine inspection

Paid promotional events with under-21 attendance count if alcohol is sold or given. The 3-year window resets on each new offense, but the prior counts stay on the record for repeat-offender escalation.

Outcomes: K7

ARM 42.13.101 progressive penalty schedule

S2-C1 ? LIST

Per offense in any 3-year period

- **1st offense:** \$250 fine
- **2nd offense:** \$1,000 fine
- **3rd offense:** \$1,500 fine + up to **20-day license suspension**
- **4th offense:** license revocation

**ARM 42.13.101 —
PROGRESSIVE PENALTY SCHEDULE:
SALES-TO-MINOR VIOLATIONS
(3-YEAR ROLLING WINDOW)**

 **APPLIES TO THE LICENSEE
(THE BAR/STORE)**

 **3-YEAR ROLLING WINDOW**
Each new violation advances the count.

1ST OFFENSE ①	 \$250 FINE  NO SUSPENSION	
2ND OFFENSE ②	 \$1,000 FINE  NO SUSPENSION	
3RD OFFENSE ③	 \$1,500 FINE  + 20-DAY LICENSE SUSPENSION	
4TH OFFENSE ④	 LICENSE REVOCATION	

 The cashier or server who made the sale separately faces personal criminal exposure under **MCA 16-6-305** (up to \$500 + 6 months jail per MCA 46-18-212).



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MT-ALCOHOL-M05-s2-c1.png

Outcomes: K7

S2-C2 ? CALLOUT

The licensee carries the fine — but you the server can be charged separately.

- Criminal misdemeanor under **MCA 16-6-305**: up to **\$500 fine**, up to **6 months in jail**, or both.
- Plus whatever the licensee fires you over.
- Plus the dram-shop civil exposure under **MCA 27-1-710** if the minor went on to harm themselves or someone else.

A single sale-to-minor can produce three separate consequences for the server: criminal, employment, civil.

Outcomes: K7

S2-C3 ? CALLOUT

The placard requirement. **MCA 16-3-301(6)** requires every licensee to display, in a prominent place on the premises, a placard **issued by the Department of Revenue** stating fully the consequences for violations of Montana's alcohol-service laws. The licensee does not author the placard's wording — DOR provides it and the licensee posts it. If a routine compliance check finds the placard missing, that is a **separate citation** on top of any sale-to-minor case. Make sure your manager has the current DOR-issued placard visible at every register and bar station.

Outcomes: K7

The narrow private-setting carve-outs (MCA 16-6-305)

S3-C1 ? TEXT

Montana has a tightly limited set of statutory exceptions under MCA 16-6-305(1)(a). A person under 21 may be provided an alcoholic beverage only in a **nonintoxicating quantity** and only by: (i) the person's **parent or legal guardian**, (ii) a **physician or dentist for medicinal purposes**, (iii) a **licensed pharmacist upon the prescription of a physician**, or (iv) an **ordained minister or priest in connection with a religious observance**. The exception never permits intoxication or over-service. 'Nonintoxicating quantity' is defined in the statute as a quantity that does not produce a blood/breath/urine alcohol concentration above 0.05 or substantial/visible mental or physical impairment.

Outcomes: K8, P5

S3-C2 ? LIST

Conditions for the exception

- **Nonintoxicating quantity only.** MCA 16-6-305(1)(c) defines this as a quantity that does NOT produce a BAC above 0.05 or substantial/visible mental or physical impairment. The exception never permits intoxication or over-service.
- **Provider must be one of the four listed in MCA 16-6-305(1)(a):** parent or legal guardian; physician or dentist (medicinal); licensed pharmacist (with prescription); ordained minister or priest (religious observance). No other relationship qualifies — siblings, friends, boyfriends/girlfriends, and stepparents without legal-guardian status do NOT qualify.
- **The carve-out applies in private settings only.** The plain text of MCA 16-6-305(1)(a) does not distinguish between on-premise and off-premise locations, but read together with MCA 16-3-301 (service-side rules), the practical effect is that licensed establishments cannot serve under-21 patrons even when a parent is present. A regulator reading the statute would not accept a defense of 'the parent provided it on our premises.' Refuse cleanly when the under-21 patron is at a licensed establishment.
- **Where the carve-out actually applies.** Examples Montana courts have treated as falling within 16-6-305(1)(a): a parent giving a sip of wine to their child at a family dinner at home; a physician administering a small medicinal dose; an ordained minister offering communion wine; a licensed pharmacist filling a prescription. None of these involve a licensed alcohol establishment.

Outcomes: K8, P5

S3-C3 ? CALLOUT

MCA 16-6-305(1)(a) (statutory text): 'Except in the case of an alcoholic beverage provided in a nonintoxicating quantity to a person under 21 years of age by the person's parent or guardian, physician or dentist for medicinal purposes, a licensed pharmacist upon the prescription of a physician, or an ordained minister or priest in connection with a religious observance, a person may not sell or otherwise provide an alcoholic beverage to a person under 21 years of age.'

Outcomes: K8

S3-C4 ? SCENARIO

Scenario. A 19-year-old at your restaurant asks for a glass of wine. Her father is at the table and offers to order it for her. She presents her real ID showing 19.

What is the right move?

Options

1. **a.** Refuse politely — MCA 16-6-305(1)(a) does not authorize on-premise service to under-21 patrons, even when a parent is present.
2. **b.** Serve the wine — her father is at the table and that triggers the exception.
3. **c.** Serve any drink — it's her dad sitting next to her.
4. **d.** Ask the manager to confirm the house policy on the spot and follow whatever the manager says.

Outcomes: K8, P5

Strategies minors use, and how to spot them

S4-C1 ? LIST

Common tactics

- **Borrowed ID** from an older sibling or friend with a similar look. Photo close but not exact — ear shape and hairline rarely match.
- **Online fake ID** — often with the wrong state's holographic seal, a slightly off typeface, or a vertical layout under a 25+ DOB.
- **Proxy buyer** — an adult buys for them at the door or after the sale at the curb. Watch the parking lot.
- **Distraction tactic** — a group orders together, the underage member ducks behind a friend at the moment of ID-check.
- **Confidence tactic** — extra-loud, extra-confident, getting friendly with the bartender as a misdirection.
- **The pass-back** — a 21+ orders a round, then passes the drink to the under-21 friend at the table or in a hallway.

Outcomes: K6

S4-C2 ? TEXT

The simplest defense is consistency. Card every customer who looks under 30, every time. The moment you start making exceptions for "they look old enough" or "they're a regular," you're carrying personal liability for the next mistake. The licensee's penalty schedule applies to the bar; the criminal misdemeanor applies to you.

Outcomes: K6, P6

S4-C3 ? SCENARIO

Scenario: The proxy buyer. A 28-year-old man walks in, orders a six-pack of Bud Light to go, pays cash, and walks out. As he opens the door you notice three people who look in their late teens waiting on the sidewalk. He hands the six-pack to one of them.

What's the right move?

Options

1. **a.** Nothing — you sold to a 28-year-old, the rest is on him.
2. **b.** Document the incident, alert the manager, and refuse future sales to that adult.
3. **c.** Run out and confront him in the parking lot.
4. **d.** Call the police as it's happening.

Outcomes: K6, P6

S4-C4 ? CALLOUT

The 'parental permission' line at the bar. Sometimes a parent walks up with their under-21 child and says, 'I'm letting them have one beer with dinner; I'm the parent, I can authorize it.' **The answer at a Montana on-premise bar is still no.** MCA 16-6-305(1)(a)'s narrow exception lets a parent provide a nonintoxicating quantity in a private setting (the family kitchen, for example) — it does NOT permit an on-premise licensee to serve a minor regardless of who is consenting. The licensee's training requirement and the ARM 42.13.101 progressive penalty apply to every on-premise pour, parental consent or not. If a server pours to a minor because the parent vouched, the citation goes to the server and the licensee, the parent's consent has no legal effect. The clean refusal: 'I can't pour to anyone under 21 here, even with your okay. The state's exception is for at-home, not at-bar. Can I bring them a soda?'

Outcomes: K6, P6

Module 5 Quiz

Passing score: 80%

Q1 ? MULTIPLE_CHOICE

Montana's administrative penalty on a licensee for sale-to-minor offenses is a progressive schedule over a rolling 3-year period. What is the practical takeaway for a licensee?

Options

1. **a.** Every offense carries the same flat fine regardless of history
2. **b.** Penalties escalate with each offense up to license revocation, and a first offense can be reduced to a reprimand if all staff were trained **Correct**
3. **c.** Only the fourth offense has any consequence
4. **d.** The penalty schedule resets after each individual violation

Correct answer: b

Outcomes: K7

Q2 ? MULTIPLE_CHOICE

Which of the following is NOT one of the providers Montana authorizes to give alcohol to a person under 21 in a nonintoxicating quantity (private-setting carve-out)?

Options

1. **a.** Parent or legal guardian
2. **b.** Physician or dentist (medicinal)
3. **c.** Older sibling or stepparent without legal-guardian status **Correct**
4. **d.** Licensed pharmacist with a physician's prescription

Correct answer: c

Outcomes: K8

Q3 ? MULTIPLE_CHOICE

What happens to the licensee on a 4th sale-to-minor offense in 3 years?

Options

1. **a.** \$5,000 fine
2. **b.** License revocation **Correct**
3. **c.** 30-day suspension
4. **d.** Mandatory retraining

Correct answer: b

Outcomes: K7

Q4 ? MULTIPLE_CHOICE

The MCA 16-6-305(1)(a) exception authorizes provision of alcohol in any quantity, as long as the provider is a parent or legal guardian.

Options

1. **true.** True
2. **false.** False **Correct**

Correct answer: false

Outcomes: K8, P5

Q5 ? MULTIPLE_CHOICE

An adult buys a six-pack and you watch him hand it to teenagers waiting on the sidewalk. What's the right next step?

Options

1. **a.** Nothing — the sale was to an adult
2. **b.** Document the incident, alert the manager, refuse future sales to that adult **Correct**
3. **c.** Run out and confront him in the parking lot
4. **d.** Demand he return the six-pack

Correct answer: b

Outcomes: K6, P6

Q6 ? MULTIPLE_CHOICE

A server personally sells alcohol to a minor. Beyond the licensee's administrative fine, what kind of exposure does the SERVER personally face under MCA 16-6-305?

Options

1. **a. A separate criminal misdemeanor charge against the server, with possible fine and jail, on top of losing the job** **Correct**
2. **b. Nothing personal; only the licensee is ever penalized**
3. **c. A warning letter the first time, with no other consequence**
4. **d. Only a civil lawsuit, never a criminal charge**

Correct answer: a

Outcomes: K7

Q7 ? SHORT_ANSWER

Name two strategies underage customers commonly use to try to obtain alcohol.

Accepted keywords: fake ID, borrowed ID, older sibling, proxy buyer, proxy, adult buy, distraction, group, confidence, loud, online ID, pass-back

Outcomes: K6

Module 06: Dram Shop and the Three Liability Types

MCA 27-1-710 three-trigger framework, \$250K caps, the 180-day notice deadline, and the 2-year statute of limitations

Estimated time: 20 minutes

Learning outcomes

- **K9:** Three liability types: criminal, civil, administrative (ARM 42.13.907 + MCA 27-1-710)
- **K10:** Montana dram shop (MCA 27-1-710): three triggers, damage caps, notice, SOL (MCA 27-1-710)

- **P7:** Apply the three-trigger test to a real-world over-service scenario (MCA 27-1-710(2))

Three liability types — one event, three exposures

S1-C1 ? TEXT

When a server's mistake causes harm in Montana, **three different legal systems** can each take a swing at the licensee. They are independent, so any combination can happen at once.

Outcomes: K9

S1-C2 ? LIST

The three types

- **Criminal.** The state charges the licensee or the server with a misdemeanor or felony. Examples: sale to a minor (**MCA 16-6-305**) or service to an obviously intoxicated person who causes a fatal crash. Penalties: fines, jail time, or both.
- **Civil.** A third party (the injured driver, the family of a victim) sues for damages under the dram shop framework (**MCA 27-1-710**). This is where the big-money exposure lives.
- **Administrative.** Montana CARD takes action against the license itself: progressive fines under **ARM 42.13.101**, suspension, or revocation. The license is the bar's ability to keep operating.



MT-ALCOHOL-M06-s1-c2.png

Outcomes: K9

S1-C3 ? CALLOUT

One incident can trigger all three. A server who knowingly serves a visibly intoxicated customer who then injures someone could face:

- A criminal charge against the server personally
- A civil dram-shop suit against the licensee
- An ARM 42.13.101 license penalty against the bar

Each runs on its own track and timeline. The criminal case might wrap in months; the civil suit can take years and seek hundreds of thousands of dollars; the administrative action can come from a single CARD compliance check the same week.

Outcomes: K9

Montana's dram shop framework: MCA 27-1-710

S2-C1 ? TEXT

MCA 27-1-710 is the **EXCLUSIVE remedy** for civil claims arising out of alcohol service in Montana. A plaintiff cannot go around the dram-shop statute by suing under general negligence or some other theory. The statute also limits when liability attaches: only when **one of three specific triggers** is met.

Outcomes: K10

S2-C2 ? LIST

The three triggers (MCA 27-1-710(2))

- **Underage sale without a reasonable effort to verify age.** Sold to a person under 21 AND the server did not make a reasonable attempt to determine the buyer's age (didn't check ID, or saw an obviously fake ID and ignored it).
- **Service to a visibly intoxicated person.** Sold or served to a person visibly intoxicated AND the server **knew or should have known**.
- **Forced or coerced consumption / alcohol-content fraud.** Server forced or coerced the customer to consume, or claimed the beverage contained no alcohol when it did.

MCA 27-1-710 –
any ONE trigger creates civil exposure.

1	2	3
SALE TO AN UNDERAGE PERSON WITHOUT a reasonable attempt to verify age.	SALE OR SERVICE TO A VISIBLY INTOXICATED PERSON AT THE TIME OF SERVICE.	FORCED OR COERCED CONSUMPTION, OR FRAUD ABOUT THE CONTENTS OF THE DRINK.
Know the age. Check the ID.	When in doubt, don't serve.	Coercion and fraud create liability.
Post-service BAC, post-service behavior, and special-promotion evidence are barred from the analysis (subsection (6)).	Notice must arrive within 180 days of service (subsection (8)).	Damage caps at \$250,000 noneconomic + \$250,000 punitive (subsection (10)).

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MT-ALCOHOL-M06-s2-c2.png

Outcomes: K10, P7

S2-C3 ? CALLOUT

MCA 27-1-710(2) (paraphrase, not verbatim): A person or entity that furnishes alcoholic beverages **may not be found civilly liable** under any other statute, theory of recovery, or common-law claim, **except as provided in this section** (i.e., only when one of the three triggers above applies). Routine service to a customer who later causes injury is NOT, by itself, dram-shop liability.

Outcomes: K10

S2-C4 ? CALLOUT

What 'reasonable effort to verify age' means. Trigger #1 lets the bar off the hook on minor-sale liability **if** the server made a reasonable check.

Reasonable means:

- Asked for and inspected an acceptable ID (per ARM 42.13.902)
- Confirmed the photo matched
- Did the DOB math
- Acted on red flags if any showed up

If you carded carefully and the customer used a good-quality fake ID that fooled you, MCA 27-1-710(2)(a) protects the bar. The customer using the fake ID carries the criminal liability under MCA 16-6-305. **The defense disappears if there's evidence you didn't check at all or ignored an obvious tell.**

Outcomes: K10, P7

S2-C5 ? CALLOUT

What 'visibly intoxicated' means in court. Trigger #2 turns on what the server **knew or should have known** at the moment of service. Plaintiffs argue the customer showed observable cues of impairment: slurring, stumbling, repeating, glassy eyes, mood swings.

The bar's defense is the incident log + employee training records:

- "Our server was trained on the Montana standard."
- "Our incident log shows we cut off two other customers that night."
- "We did not observe visible impairment in the named customer."

Without records, the bar's defense becomes a he-said-she-said.

Outcomes: K10, P7

Damage caps and procedure

S3-C1 ? LIST

Caps and timeline (MCA 27-1-710(10)–(11))

- **\$250,000 cap on noneconomic damages** per event (pain, suffering, loss of consortium)
- **\$250,000 cap on punitive damages** per event
- **Economic damages are NOT capped** (medical bills, lost wages, future earnings)
- **Plaintiff must give certified-mail notice within 180 days** of the sale or service. Missing the 180-day window means losing the dram-shop claim.
- **2-year statute of limitations** from the date of the sale or service to commence the civil action

Outcomes: K10

S3-C2 ? CALLOUT

Why economic damages aren't capped. A medical bill is a real number, not a discretionary jury award. If a victim has \$1.2 million in lifetime medical care from a crash, that figure goes into the verdict regardless of the noneconomic-damages cap. The \$250K caps only limit pain-and-suffering and punitive awards. **For a serious crash, the economic damages alone can dwarf the caps.**

Outcomes: K10

S3-C3 ? CALLOUT

MCA 27-1-710(6): banned evidence. When deciding whether the customer was visibly intoxicated AT THE TIME of service, the jury **may not consider**:

- The customer's later BAC (e.g., the 0.18 reading at the crash scene three hours after they left)
- Signs of intoxication that appeared after they left
- Post-service conduct (a fight at a different bar, the crash itself)
- That the bar was running happy hour
- Hypothetical-BAC reconstructions by experts

The test is **what the server saw and reasonably inferred at the moment of service**. This is one of the strongest defenses in Montana — but it only works if the bar has the records to back up what they observed at the time.

Outcomes: K10

How a dram-shop case actually unfolds

S4-C1 ? TEXT

Most servers never see a dram-shop case. The ones who do experience it as a slow-motion process that starts months after the incident and stretches over years.

Outcomes: K10

S4-C2 ? LIST

Typical timeline

- **Day 0:** Incident happens. Customer leaves the bar; later that night someone is injured.
- **Days 1–60:** Police investigate the underlying crash or injury. Plaintiff hires an attorney.
- **Within 180 days of the incident:** Plaintiff's attorney sends certified-mail **statutory notice** to the licensee. Notice triggers the bar's insurer; insurer assigns defense counsel. Notice served after day 180 forfeits the dram-shop claim.
- **Days 180–365:** Discovery. Plaintiff requests the bar's incident log, employee training records, surveillance video, receipts, refusal log, comp slips, anything that documents the night.
- **Months 12–24:** Depositions. The server who poured the drinks is deposed. Bar manager is deposed. Other servers and patrons may be subpoenaed.
- **Months 12–24:** Mediation or settlement talks. Most cases settle here, often within insurance limits.
- **Months 18–24+:** If no settlement, jury trial. The server testifies about what they observed at the time of service.

Outcomes: K10

S4-C3 ? CALLOUT

What the bar's defense rests on at trial. Two things, almost always:

- **The incident log** — contemporaneous notes that the bar refused other customers, monitored the room, knew the standard, and didn't see visible impairment in the named customer.
- **The training records** — proof that the server who poured the drinks was certified RASS-trained, knew the cues, and applied them.

Without either, the case becomes a credibility contest. With both, the bar is in a much stronger position to defend the claim, sometimes before trial.

Outcomes: K10

S4-C4 ? TEXT

The insurance side of a dram-shop claim. Most Montana licensed establishments carry general liability coverage that includes a liquor liability endorsement (sometimes a separate policy). The 180-day notice is the trigger event for the carrier — once the bar receives certified-mail notice, the carrier assigns defense counsel and a claims adjuster within days. The bar's job between notice and trial:

- Preserve every piece of evidence from the date of service: receipts, time-stamped surveillance, the incident log, the server's training certificate, and any text messages or emails about the customer that night.
- Avoid contact with the injured party or their family. Any communication runs through defense counsel.
- Don't issue refunds, apologies, or sympathetic statements that plaintiff's counsel can read aloud at trial as an admission. "We're so sorry, we should've cut him off" is the worst thing a manager can say after a crash.
- Cooperate fully with defense counsel: depositions, document production, sworn statements. Stalling or sandbagging is the fastest way to lose insurance coverage.

The carrier's incentive is settlement within the \$250K noneconomic + \$250K punitive cap unless economic damages (medical, lost wages) push the case much higher. A well-documented bar with strong training records can sometimes resolve a dram-shop case for a fraction of the cap. A poorly documented bar with sloppy serving practices will often settle near the cap on the carrier's recommendation.

Outcomes: K10, P7

S4-C5 ? CALLOUT

Dram-shop timeline at a glance. From sale to verdict, a typical Montana dram-shop case follows this rough timeline:

- **Day 0:** Sale or service to a customer who later causes injury. (The clock for both the 180-day notice deadline and the 2-year statute of limitations starts here under MCA 27-1-710(8).)
- **Days 1-30:** Police investigate. If alcohol involvement is suspected, plaintiff's counsel may already be reviewing crash reports and identifying the bar.
- **Days 30-180:** Plaintiff sends certified-mail statutory notice naming the bar. Notice must arrive by day 180 or the dram-shop claim is forfeited.
- **Day 181 - Month 24:** Discovery phase. Defense counsel reviews the bar's incident log, training records, surveillance, and receipts. Depositions of the server, manager, and witnesses. Settlement discussions.
- **By Month 24:** Civil action must commence. Either settle or file suit by the 2-year mark from sale/service.
- **After filing:** Trial typically 6-18 months later. Judgment (or settlement). Damages capped at \$250K noneconomic + \$250K punitive per event under MCA 27-1-710(10); economic damages uncapped.

The earlier the bar's defense team has access to good documentation, the better the outcome. Train every server to write a brief incident-log entry for any near-cutoff or refusal, even when nothing dramatic happens. The boring entries are what save the bar in court — they show the standard was applied consistently, not selectively, the night of the incident. A bar with 200 routine log entries and zero gaps tells a different story than a bar with one panicked entry written the day plaintiff's counsel sent notice.

Outcomes: K10, P7

Two scenarios

S5-C1 ? SCENARIO

Scenario 1: The customer who didn't appear intoxicated. A 23-year-old came into your bar at 8 PM, ordered three beers over two hours, didn't slur, didn't stumble, paid, and left at 10 PM. At 11 PM he caused a fatal crash a few miles away. His BAC at the scene was **0.18**, and the family is suing the bar.

Does Montana's dram-shop framework let the family win?

Options

1. **a.** Yes — high BAC at the scene proves visible intoxication at the bar.
2. **b.** No — none of the three triggers apply. The customer was over 21, didn't appear intoxicated, and wasn't forced to drink.
3. **c.** Yes — the bar should have asked where he was driving.
4. **d.** Yes — any drinking and driving creates liability.

Outcomes: P7, K10

S5-C2 ? SCENARIO

Scenario 2: The customer who clearly was intoxicated. A 240 lb regular drank seven 16 oz craft IPAs over three hours. By the seventh he was slurring, swaying when standing, and getting argumentative. The server poured the seventh anyway. At midnight he T-boned another car at an intersection, severely injuring the other driver.

Which trigger applies, and what's the bar's exposure?

Options

1. **a.** No trigger applies — he was a regular and tolerance is a defense.
2. **b.** Trigger #2 (service to a visibly intoxicated person). The bar faces civil dram-shop exposure capped at \$250K noneconomic + \$250K punitive plus uncapped economic damages, plus the server's potential misdemeanor exposure under MCA 16-6-314 for violating Montana alcohol-code prohibitions (including MCA 16-3-301(4)(b) and MCA 16-6-304), plus an ARM 42.13.101 license penalty.
3. **c.** Trigger #1 only — the bar should have ID'd him again.
4. **d.** No civil exposure if the bar's insurer covers the loss.

Outcomes: K10, P7

How to protect the bar before anything happens

S6-C1 ? LIST

What every Montana bar should keep, every shift

- **Incident log** — refusals, ID rejections, customer behavior of note, manager interventions, with date, time, and server's initials.
- **Training records** — every server's RASS certificate and date of training. Pull a copy from CertReady's business dashboard once a quarter.
- **Surveillance footage** — most house policies retain at least 30 days. For incidents that may produce a dram-shop claim, retain indefinitely.
- **Lyft / Uber reimbursement tabs** — when the bar pays for a customer's ride home, the receipt becomes part of the night's defense file.
- **House placard** at every register and bar station (per MCA 16-3-301(6)) — and a photo of it on file.
- **Refusal log** — even the door bouncer's refused-entry list is admissible evidence that the establishment trains and enforces.

Outcomes: P7

S6-C2 ? CALLOUT

The hardest case for plaintiff's counsel is a bar that can produce: a refusal log showing the bar cut off three other customers that night, a training record showing the server poured was certified six months ago, and surveillance video showing the customer in question did not slur or sway at the bar. That combination can make a dram-shop claim much harder to prove.

Outcomes: P7

S6-C3 ? TEXT

The 180-day notice window under MCA 27-1-710(8) — what the bar will actually see. A dram-shop case in Montana starts with a certified-mail notice to the licensee. The notice must arrive within 180 days of the sale or service alleged to have caused the injury. The notice typically lists the date of service, the licensee's name, a brief factual description, and the law firm representing the injured party. From the bar's perspective, the 180-day window is the practical hinge: if surveillance video is on a 90-day overwrite cycle (standard for most retail systems), the footage may already be gone by the time the notice lands. The incident log, the training records, the receipts showing the customer's tab, and the staff-list-for-that-shift are the artifacts most likely to survive the gap. **The single best preservation move a bar can make** is to keep video archived for at least 200 days for any night where any incident report was filed, and to keep incident logs for the full 5-year statute window. The cost of additional video storage is trivial compared to the cost of going into a dram-shop case with no footage of the customer at the bar.

Outcomes: P7

S6-C4 ? CALLOUT

The MCA 27-1-710(10) damage caps are not unlimited protection. Montana caps noneconomic damages at \$250,000 per event and punitive damages at \$250,000 — meaning a single dram-shop case carries an exposure ceiling on the soft-money portions of the judgment. **What's NOT capped:** economic damages. Lost wages, medical bills, life-care planning costs, and earning-capacity claims have no statutory cap. In a case involving a young adult plaintiff with a multi-decade earning horizon, the uncapped economic-damages line can run into seven figures all by itself. The cap is a real benefit but it is not a magic shield; insurance carriers and risk managers price licensee policies on the uncapped economic-damages exposure, which is why a bar with multiple dram-shop notices in its history can see premium increases that exceed the entire ARM 42.13.101 fine schedule by an order of magnitude.

Outcomes: P7

S6-C5 ? TEXT

The 2-year statute of limitations under MCA 27-1-710(8) — what it means in practice. Once the 180-day notice window has run, the plaintiff has the rest of the 2-year statute from the date of sale or service to actually file the civil complaint. That 2-year window is the planning horizon for any licensee defense: in practice, dram-shop suits in Montana are most often filed in the 12-to-18-month range after the underlying event. From the bar's side, this means a dram-shop file that opened in May 2026 may sit quietly until late 2027 before discovery requests start arriving. **The risk-management implication is that record retention isn't optional, and it isn't a 'one and done' exercise.** A bar that purges incident logs annually has stripped its own defense before the suit is even filed. Retention practices anchored to the 5-year record-retention floor under CertReady policy and Montana DOR audit practice are the floor; many licensee insurers require retention of all incident records, training certificates, and video archives for the full 5-year window as a condition of coverage at preferential rates. Managers should map the 5-year obligation to their retention systems explicitly: cloud video archive for surveillance, secured paper or digital binder for incident logs, and a separate training-certification log keyed to each individual server's RASS card number and date of completion.

Outcomes: P7

Module 6 Quiz

Passing score: 80%

Q1 ? MULTIPLE_CHOICE

Which is NOT one of the three liability types covered in Montana RASS?

Options

1. a. Criminal
2. b. Civil (dram shop)
3. c. Administrative (license action)
4. d. Tax **Correct**

Correct answer: d

Outcomes: K9

Q2 ? MULTIPLE_CHOICE

Which of the following is NOT one of the three Montana dram-shop triggers?

Options

1. **a.** Sale to a minor without a reasonable attempt to determine age
2. **b.** Service to a visibly intoxicated person
3. **c.** The customer drove home after drinking **Correct**
4. **d.** Forced or coerced consumption

Correct answer: c

Outcomes: K10, P7

Q3 ? MULTIPLE_CHOICE

Under Montana's dram-shop statute (MCA 27-1-710), which kind of damages is subject to a statutory cap and which is not?

Options

1. **a.** Noneconomic and punitive damages are capped; economic damages (medical bills, lost wages) are not capped **Correct**
2. **b.** All damages are capped at the same amount
3. **c.** Economic damages are capped; pain-and-suffering is unlimited
4. **d.** There are no caps of any kind in Montana dram-shop cases

Correct answer: a

Outcomes: K10

Q4 ? MULTIPLE_CHOICE

In a Montana dram-shop case, the jury can use a customer's post-service BAC to prove they were visibly intoxicated at the bar.

Options

1. **true.** True
2. **false.** False **Correct**

Correct answer: false

Outcomes: K10

Q5 ? MULTIPLE_CHOICE

A dram-shop plaintiff must serve certified-mail notice on the licensee within a limited window of the sale or service. Why does this rule make a contemporaneous incident log so valuable to the licensee?

Options

1. **a.** It does not matter; the licensee can reconstruct the night from memory at trial
2. **b.** Notice can arrive months after the incident, so a log written that night is the licensee's strongest evidence of what the server actually observed **Correct**
3. **c.** The log lets the licensee avoid the lawsuit entirely
4. **d.** An incident log is only useful for criminal cases, not dram-shop claims

Correct answer: b

Outcomes: K10

Q6 ? MULTIPLE_CHOICE

Which of the following is the strongest piece of evidence in defending a Montana dram-shop case?

Options

1. a. The bar's revenue numbers from the night
2. b. A contemporaneous incident log + RASS training records for the server who poured
Correct
3. c. Character references from regulars
4. d. A handwritten statement from the bar owner

Correct answer: b

Outcomes: P7

Q7 ? MULTIPLE_CHOICE

Are economic damages (medical bills, lost wages) capped under MCA 27-1-710?

Options

1. a. Yes, capped at \$250,000
2. b. Yes, capped at \$1,000,000
3. c. No — economic damages are uncapped **Correct**
4. d. Only if the plaintiff is a Montana resident

Correct answer: c

Outcomes: K10

Q8 ? SHORT_ANSWER

Briefly explain why MCA 27-1-710(2) is described as 'restrictive' compared to other states' dram-shop laws.

Accepted keywords: three triggers, exclusive remedy, narrow, specific, no general negligence, exclusive, limited, 27-1-710

Outcomes: K10

Module 07: Hours, Promotions, and Montana License Categories

MCA 16-3-304, no-below-posted-price rule, license types, special permits, and HB 211 delivery

Estimated time: 15 minutes

Learning outcomes

- **K11:** Montana hours of sale and promotion rules (MCA 16-3-304)
- **K12:** Montana license categories (Title 16 Ch. 4, MCA)
- **P8:** Identify Montana sale-hour violations and license-class boundaries (MCA 16-3-304, 16-2-104)

Hours of sale

S1-C1 ? CALLOUT

MCA 16-3-304 (paraphrase, time window verbatim): Licensed alcohol retailers in Montana must be "closed each day between 2 a.m. and 8 a.m." Local ordinances may impose stricter hours; follow whichever rule applies at your location.

Outcomes: K11

S1-C2 ? LIST

Hour rules at a glance

- **On-premise (all-beverage and beer/wine):** 8 a.m. to 2 a.m., seven days a week
- **Off-premise (grocery, c-store, off-prem beer/wine):** 8 a.m. to 2 a.m., seven days a week, including Sundays
- **Agency liquor stores** operate under separate rules (MCA 16-2-104 sets a maximum window of 8 a.m. to 2 a.m. for their hours; off-premise spirit retail is outside the on-premise scope of this course).
- **Sunday on-premise sales follow the standard schedule.** There is no Sunday ban for licensed retail in Montana
- **Restaurant beer/wine licenses** have separate food-service-hour limits that may be stricter than the general 8 a.m.–2 a.m. state window. Follow the rule that applies to your specific license type and any local ordinance.

Outcomes: K11

S1-C3 ? CALLOUT

State law (MCA 16-3-304): no alcohol sales between 2 a.m. and 8 a.m. Local ordinances may close earlier. A patron present at 2:01 a.m. with an open drink served by a licensed retailer is a violation, regardless of whether they paid for it before close.

Practical house-policy last-call cadence (typical industry timing — not statute):

- Last call announced around **1:30 a.m.**
- No new drinks poured after **1:45 a.m.**
- All open containers off the bar/tables by **2:00 a.m.**
- Patrons out the door shortly after

Door staff should announce the close progressively, not just at 2 a.m. — that's how you avoid the rush-and-resist scenario. Follow your local ordinance and house closing procedures.

Outcomes: K11, P8

S1-C4 ? CALLOUT

Local ordinances can be stricter than state law. Some Montana cities and counties have earlier last-call requirements than the state 2 a.m. cap. Always follow the local rule that applies to your location — your city or county ordinance is the operating ceiling, the state hour is the outer cap.

Outcomes: K11

Promotions and the no-below-posted-price rule

S2-C1 ? TEXT

Montana does **not** have a numerical happy-hour limit (some states cap discount drinks at 50% or restrict happy hours to certain hours; Montana doesn't). What it has is a hard floor: **a licensee may not sell liquor below the price posted for that drink.**

Outcomes: K11

S2-C2 ? LIST

What's banned (no-below-posted-price)

- **No BOGO on alcoholic beverages** where the second drink is effectively sold at \$0 — "buy one, get one free" violates the posted-price rule because the second drink is below its posted price
- **No "free shot"** giveaways tied to a purchase
- **No "two for one"** on cocktails
- **No "first drink free"** for new customers
- **No drink-token comps** without per-drink revenue at posted price

Outcomes: K11

S2-C3 ? LIST

What's typically allowed (verify with licensee)

- **Posted-price drink specials** during clearly defined hours — the special price IS the posted price for those hours
- **Themed nights** with food-and-drink combos where the alcohol is priced separately above the floor
- **Other documented promotions** (e.g., birthday/wedding comp for the celebrant only, charity event pricing) — confirm with the licensee that the promotion complies with Montana pricing/advertising/DOR rules before running it.

Outcomes: K11

S2-C4 ? CALLOUT

Don't free-pour promotions without confirming compliance. Montana alcohol promotions must comply with the posted-price rule, advertising rules, and any DOR/CARD requirements. Do not run BOGOs, free-drink giveaways, comp-drink campaigns, or alcohol-included promotions unless the licensee has confirmed the promotion is lawful — and, where required, secured any necessary DOR/CARD approval in advance. When in doubt, ask the licensee.

Outcomes: K11

Montana license categories you'll see at work

S3-C1 ? LIST

Common license types

- **All-beverage license:** full liquor on-premise (bars, casinos, hotel restaurants). Spirits + beer + wine. The most common bar license in Montana.
- **Restaurant beer/wine:** beer and wine on-premise during food-service hours only. No spirits. The food rule means alcohol revenue can't exceed a threshold of food revenue.
- **Off-premise beer/wine:** grocery stores, convenience stores, gas stations. Sealed containers only. No spirits.
- **Manufacturer license** (brewery / winery / distillery sample-room): limited on-site service tied to production. Tasting rooms have unique sample-size and time-limit rules.
- **Agency liquor store** (state-contracted spirits retailer): the only off-premise outlet for spirits. State sets the wholesale price.
- **Catering endorsement:** extends service hours and locations for special events with prior DOR notice. Adds an off-premise event slot to an on-premise base license.
- **Special permit (16-4-301):** for community/charity events. **RASS training is NOT required** for special-permit holders — they're a separate regulatory regime.



MONTANA

LICENSE CATEGORIES

(Title 16 Ch. 4, MCA)



All require RASS-trained staff; special-permit events under MCA 16-4-301 are statutorily exempt per MCA 16-4-1002.

	TYPE	WHAT CAN BE SOLD	ON/OFF-PREMISE	RASS TRAINING REQUIRED FOR STAFF
1	 All-beverage license	Spirits + beer + wine	 On-premise	 Yes
2	 Restaurant beer/wine license	Beer + wine (food-service hours only)	 On-premise	 Yes
3	 Off-premise beer license	Beer only (sealed containers)	 Off-premise	 Yes
4	 Off-premise beer + wine license	Beer + wine (sealed containers)	 Off-premise	 Yes
5	 Manufacturer license (brewery / winery / distillery sample room)	Limited on-site sampling tied to production	 On-premise sample room	 Yes
6	 Agency liquor store	Spirits + table wine (state-contracted; sealed containers)	 Off-premise	 Yes
7	 Catering endorsement	Extends an on-premise base license to off-premise event locations with prior DOR notice	 Both	 Yes

RESPONSIBLE SERVICE. STRONG COMMUNITIES.



1 Know the Law
Understand your license privileges and limits under Title 16, Ch. 4, MCA.



2 Check ID
Always verify age before every sale or service.



3 Prevent Over-Service
Use good judgment and refuse service when needed.



4 Report Concerns
Help keep Montana communities safe and responsible.



5 Complete RASS Training
RASS-trained staff protect your business and our communities.



CertReady

Montana Responsible Alcohol Sales & Service Training



Quality training. Compliant staff. Stronger communities.
certready.com



 All sale-hour rows follow MCA 16-3-304 (8 a.m. – 2 a.m.) unless a local ordinance is stricter or a restaurant license's food-service hours are stricter.

 **8 a.m. – 2 a.m.**

MT-ALCOHOL-M07-s3-c1.png

Outcomes: K12

S3-C2 ? CALLOUT

Servers must be 18 or older to serve alcohol in an open container in Montana (**MCA 39-2-306**). There is no minimum age to ring up sealed-container off-premise sales (subject to Fair Labor Standards Act federal rules).

Outcomes: K12

S3-C3 ? CALLOUT

The catering endorsement, in practice. A bar with an all-beverage license + a catering endorsement can pour at a wedding reception in a hotel banquet room across town that night. The endorsement requires:

- **Pre-event notice to DOR** (10 days minimum)
- **A licensed-employee server** at the event
- **No bring-your-own** by the host or guests
- **The same hours-of-service rules** as the base license

Without the endorsement, the base license can't legally pour at an off-site event.

Outcomes: K12

S3-C4 ? TEXT

License-class boundaries you'll run into at the bar. Knowing which license your employer holds determines what you can pour. Spirits questions are the most common confusion point. A few specific scenarios:

- **All-beverage license:** Can pour any combination of beer, wine, and distilled spirits. Most stand-alone bars, taverns, and full-service restaurants hold this class. If your bar back has a bottle of tequila on the rail, you almost certainly hold an all-beverage license.
- **Restaurant beer/wine license:** Beer and table wine ONLY. No distilled spirits — no vodka in a Bloody Mary, no whiskey in an Irish coffee, no tequila in a margarita. Some restaurants try to work around this with "mocktail" presentations of classic cocktails. That's a hard line. If a customer orders a margarita at a beer/wine restaurant, the correct response is to offer beer or wine alternatives and explain (politely) that the kitchen license type doesn't permit distilled spirits.
- **Off-premise beer/wine license:** Sales for consumption away from the premises. Grocery stores, c-stores, and dedicated beer/wine retailers hold this class. Different sale-hour and ID-check workflow — they sell the product but don't pour it. Off-premise courses cover this licensee category in depth; this on-premise course mentions it for context.
- **Agency liquor store:** State-authorized retail of distilled spirits for off-premise consumption (and table wine per MCA 16-2-101). Operating hours are 8 AM to 2 AM per MCA 16-2-104, same as licensed retailers. Agency stores are NOT a category an on-premise server typically works at, but customers sometimes ask servers questions about them.

When in doubt about your license class, ask your manager or check the printed license posted at the door — Montana law requires the license to be visibly displayed on the premises.

Outcomes: K12, P8

Third-party delivery (HB 211)

S4-C1 ? TEXT

HB 211 (eff. **January 1, 2026**) created a third-party alcohol delivery license for platforms like **DoorDash, Uber Eats, Grubhub, and Instacart**. It also renamed the Act to the **Responsible Alcohol Sales, SERVICE, and DELIVERY Act**. Delivery drivers must complete either a responsible server and sales training program or a delivery training program under Montana law before making their first alcohol delivery. This on-premises RASS course is written for licensed-location staff, not as a standalone delivery-driver course.

Outcomes: K12

S4-C2 ? LIST

Delivery rules at a glance

- Drivers must be **21 or older** and hold a valid driver's license. HB 211 also imposes background-check standards (e.g., no recent felony or DUI within a defined lookback period) — confirm current driver-eligibility criteria with CARD before relying on a specific number.
- **Beer and table wine ONLY**. No spirits via third-party delivery
- **Delivery hours** must fall within the time window allowed by HB 211 and CARD rules. Delivery is tied to the licensed retailer's sales window and may extend briefly after the retailer's sales cutoff — confirm the current rule before relying on a specific minute.
- **ID-scanning technology** (or DOR-approved alternative) at delivery
- **Refuse delivery to intoxicated recipients** or unmarked addresses / PO boxes
- **Alcohol must be transported separately from the driver's reach during transit** (storage rules apply during delivery).
- **Drivers complete required training before delivery**. Note: this on-premises RASS course is for service staff at licensed retailers, not for third-party delivery drivers. Montana law allows a responsible server and sales training program or a delivery training program before a driver's first alcohol delivery; confirm CARD's current delivery-training expectations before relying on a specific program.

Outcomes: K12

Two scenarios

S5-C1 ? SCENARIO

Scenario 1: The 1:55 a.m. last-call. It's 1:55 a.m. A regular flags you down and asks for one more shot. You haven't yet called last call.

What's the right call?

Options

1. **a.** Pour the shot — it's still before 2 a.m.
2. **b.** Politely tell him last call has passed; offer water or a comp non-alcoholic drink.
3. **c.** Pour the shot but ask him to drink it before 2.
4. **d.** Pour the shot and let him take it to go.

Outcomes: K11, P8

S5-C2 ? SCENARIO

Scenario 2: The unannounced "buy one get one". Your manager texts the team mid-shift: "It's slow tonight — let's run a buy-one-get-one on house cocktails for the next two hours." You haven't seen any documentation that the licensee has confirmed this promotion is lawful.

What's the right next step?

Options

1. **a.** Run the BOGO — managers handle compliance.
2. **b.** Pull the manager aside, point to the posted-price rule, and ask whether the licensee has confirmed this promotion complies with Montana DOR/CARD requirements.
3. **c.** Run it but only on customers you know are 21+.
4. **d.** Run a discount instead — half-off cocktails.

Outcomes: K11, P8

Special permits, special-event windows, and the 16-4-1002 RASS carve-out

S6-C1 ? TEXT

Two categories of special permits exist under MCA 16-4-301. Category one is **special-event permits** — issued to qualifying organizations (nonprofits, civic groups, fraternal societies) to sell beer and table wine at a discrete event, up to **12 such permits per qualifying organization per year**. Category two is **veterans'/fraternal post permits** — issued to recognized posts/lodges to sell all alcoholic beverages at their premises on specific event days, also capped at **12 annually**. A standard restaurant or bar doesn't normally hold special permits; the special-permit world is wedding receptions in church basements, charity wine tastings at country clubs, and American Legion post Saturday-night events. **The critical statutory point for training purposes:** MCA 16-4-1002 says 'this part does not apply to special permits issued under 16-4-301' — meaning the **RASS training requirement is statutorily waived for staff who serve under a special permit**. A bartender hired for a one-night Knights of Columbus charity fundraiser does not need to hold a current RASS card to pour at that event. Standard on-premise licensees do; special-permit pours are the explicit exception.

Outcomes: K11

S6-C2 ? CALLOUT

The training-exemption trap. Just because RASS training is waived under a special permit doesn't mean the substantive rules vanish. The bartender at the church-basement wedding reception **still cannot serve a visibly intoxicated guest** (MCA 16-3-301(4)(b) and MCA 16-6-304 still apply) and **still cannot serve anyone under 21** (MCA 16-6-305 still applies). Dram-shop liability under MCA 27-1-710 attaches to the permit-holding organization the same way it does to a licensed bar. The waiver is for the training requirement, not for the underlying conduct rules. Many special-permit organizations use this carve-out as a chance to staff with volunteers; the smart organizations still bring in RASS-trained staff anyway, precisely because the carve-out doesn't insulate them from the catastrophic-event risk that the training is designed to prevent. A church group running a wedding reception that over-serves a guest who drives home and crashes is in dram-shop court regardless of whether the bartender held a RASS card. The practical takeaway for restaurant and bar managers: if your venue ever hosts a private event under a borrowed special permit (a wedding rental, a venue-for-hire arrangement, a charity fundraiser), confirm with the permit-holding organization in writing who is responsible for the underlying conduct rules and whether your standard service staff are providing the pour. Where your own staff are pouring under the permit holder's umbrella, your licensee record can be affected by an incident even on a 'permit night.' The cleanest practice is to require RASS-trained staff for every pour, every event, every shift — the certification cost is trivial compared to a single dram-shop notice under MCA 27-1-710(8). The same logic applies to host bars renting space to outside caterers: the host bar's licensee record can be implicated even when the pour staff are nominally the caterer's employees.

Outcomes: K11

Module 7 Quiz

Passing score: 80%

Q1 ? MULTIPLE_CHOICE

When must a Montana licensed retailer be closed for alcohol sales each day?

Options

1. **a.** Midnight to 6 a.m.
2. **b.** 1 a.m. to 7 a.m.
3. **c.** 2 a.m. to 8 a.m. **Correct**
4. **d.** 3 a.m. to 9 a.m.

Correct answer: c

Outcomes: K11

Q2 ? MULTIPLE_CHOICE

Montana allows licensees to run a 'two-for-one' on liquor cocktails as long as they don't advertise it.

Options

1. **true.** True
2. **false.** False **Correct**

Correct answer: false

Outcomes: K11

Q3 ? MULTIPLE_CHOICE

Which Montana license can sell distilled spirits for on-premise consumption?

Options

1. **a. All-beverage license** **Correct**
2. **b. Off-premise beer/wine**
3. **c. Restaurant beer/wine**
4. **d. Agency liquor store**

Correct answer: a

Outcomes: K12

Q4 ? MULTIPLE_CHOICE

Under Montana's third-party alcohol delivery law (effective January 1, 2026), third-party delivery drivers may deliver:

Options

1. **a. Beer and table wine only** **Correct**
2. **b. Spirits only**
3. **c. Anything an off-prem store sells**
4. **d. Beer, wine, and spirits**

Correct answer: a

Outcomes: K12

Q5 ? MULTIPLE_CHOICE

What is the minimum age to serve alcohol in an open container on premise in Montana (MCA 39-2-306)?

Options

1. a. 16
2. b. 18 **Correct**
3. c. 19
4. d. 21

Correct answer: b

Outcomes: K12

Q6 ? MULTIPLE_CHOICE

A holder of a Montana special permit (16-4-301) for a charity event must complete RASS training.

Options

1. true. True
2. false. False **Correct**

Correct answer: false

Outcomes: K12

Q7 ? MULTIPLE_CHOICE

What is a practical house-policy "no new pours" cutoff for a 2:00 a.m. close, to avoid an after-hours alcohol situation at the bar?

Options

1. a. 1:30 a.m.
2. b. 1:45 a.m. **Correct**
3. c. 1:55 a.m.
4. d. 2:00 a.m.

Correct answer: b

Outcomes: P8

Q8 ? SHORT_ANSWER

List two requirements for a third-party delivery driver under HB 211.

Accepted keywords: 21, valid DL, driver's license, training, delivery training, beer, table wine, no spirits, ID scanning, refuse intoxicated, delivery hours, approved address

Outcomes: K12

Module 08: Montana DUI Law and the Server's Role

MCA 61-8-1002 per-se BACs, MCA 61-8-1016 implied consent, and MCA 61-8-1007/1008 penalty escalation (1007 for 1st-3rd; 1008 for 4th+)

Estimated time: 15 minutes

Learning outcomes

- **K13:** Montana DUI per-se BACs and THC limit (MCA 61-8-1002)
- **K14:** Implied consent law (MCA 61-8-1016)
- **K15:** DUI penalty escalation 1st-4th offense (MCA 61-8-1007 covers 1st-3rd; MCA 61-8-1008 covers 4th+) (MCA 61-8-1007, 61-8-1008)

- **P9:** Estimate a customer's BAC against per-se limits and decide whether to call a ride (MCA 61-8-1002)

Per-se BAC limits in Montana

S1-C1 ? TEXT

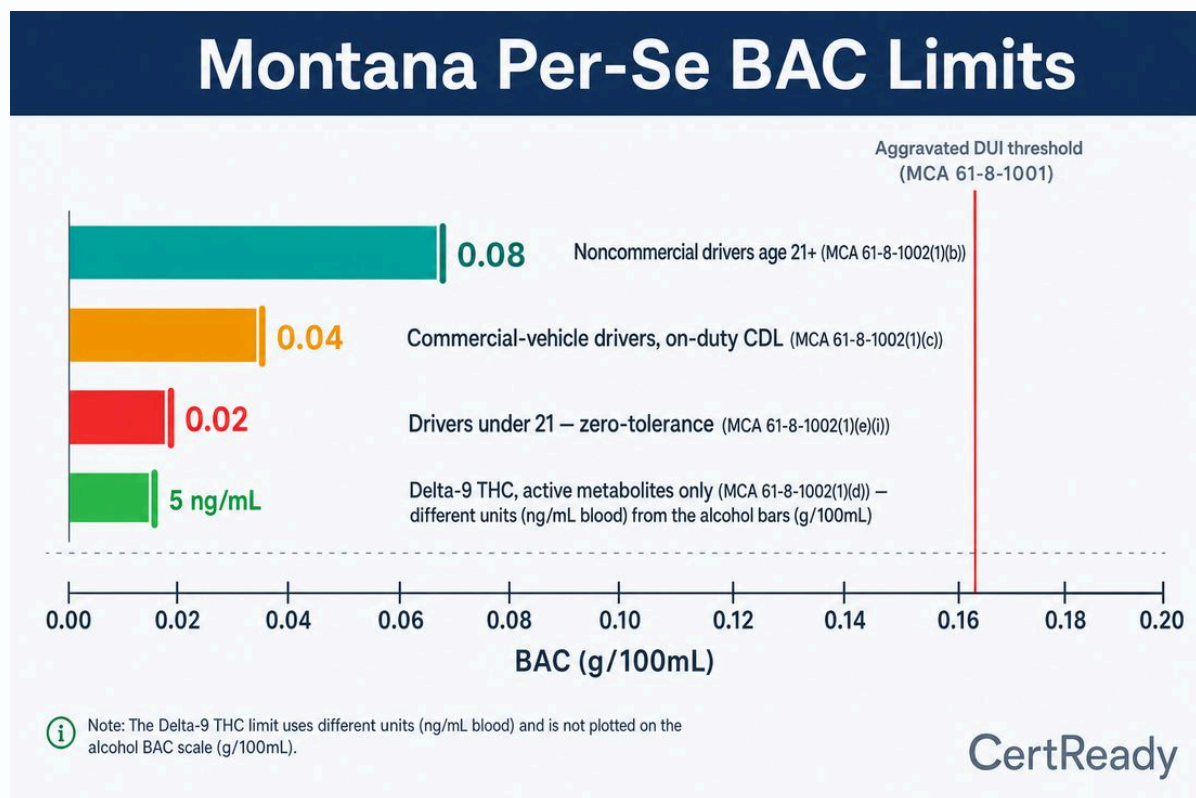
Montana, like every state, has **per-se BAC limits** — numbers that establish a per-se alcohol or drug driving offense without separate proof of impairment. **Per-se** literally means "by itself": the number is the offense. Below those limits, a driver can still be charged with DUI based on observed impairment, but the per-se thresholds are the absolute lines.

Outcomes: K13

S1-C2 ? LIST

Per-se thresholds (MCA 61-8-1002)

- **0.08 BAC** for noncommercial drivers age 21+ — the standard adult driver
- **0.04 BAC** for commercial drivers (CDL holders) — half the standard limit
- **0.02 BAC** for drivers under 21 — Montana's zero-tolerance line
- **5 ng/mL Delta-9 THC** in blood — the separate per-se limit for cannabis



MT-ALCOHOL-M08-s1-c2.png

Outcomes: K13

S1-C3 ? CALLOUT

MCA 61-8-1002 (summary): Montana's per-se DUI thresholds are codified in subsection (1) with separate subdivisions for each driver class — 0.08 alcohol concentration for non-commercial 21+ drivers, 0.04 for commercial drivers, 0.02 for drivers under 21, and 5 ng/mL Delta-9 THC (excluding inactive metabolites) for any driver. Meeting any threshold establishes per-se DUI without separate proof of impairment.

Outcomes: K13

S1-C4 ? CALLOUT

Drink-count translation for the standard driver. A 160 lb adult typically reaches:

- **0.02 BAC** at about **1 standard drink** in an hour
- **0.04 BAC** at about **2 drinks** in an hour
- **0.08 BAC** at about **4 drinks** in an hour
- **0.16 BAC** (aggravated DUI line) at about **8 drinks** in 2 hours

Body weight matters. A 110 lb adult hits each band on roughly half the drinks. A 220 lb adult on about 30% more.

Outcomes: K13, P9

S1-C5 ? CALLOUT

Aggravated DUI is a separate, harsher charge. It applies when:

- The driver's BAC is **0.16 or higher**, OR
- The driver **refused a chemical test** AND has a prior DUI in the past 10 years

Aggravated DUI carries longer mandatory jail and higher fines than a regular first-offense DUI. A bar that serves a customer past 0.16 and into aggravated-DUI territory faces stronger plaintiff arguments in any later dram-shop suit.

Outcomes: K13

Implied consent (MCA 61-8-1016)

S2-C1 ? TEXT

When a person drives in Montana, they are **deemed by law to have consented** to a chemical test (breath, blood, or urine) on lawful arrest for DUI. The driver doesn't have to actually agree at the moment — the consent is built into the act of driving. **Refusing the test triggers an automatic license suspension, separate from the DUI itself.**

Outcomes: K14

S2-C2 ? LIST

Refusal penalties

- **1st refusal:** 6-month license suspension
- **2nd refusal within 5 years:** 1-year suspension
- **The refusal itself is admissible** in court as evidence of consciousness of guilt
- Refusal does NOT prevent the DUI charge — police can get a warrant for a forced blood draw under existing case law

Outcomes: K14

S2-C3 ? CALLOUT

Why this matters at the bar. A regular customer who's had four drinks may believe they can "just refuse the breathalyzer and beat it." That's a misconception worth correcting — politely, when relevant — because:

- Refusal still gets them a 6-month license suspension automatically
- The refusal is admissible at trial against them
- Police can get a warrant for a blood draw anyway
- The refusal stacks with any aggravated-DUI exposure they already have
- A \$300 administrative fee is owed regardless of the criminal outcome

The "refuse the test and walk" myth is one of the most common reasons impaired customers convince themselves it's safe to drive home.

Outcomes: K14, P9

S2-C4 ? CALLOUT

CDL holders face enhanced refusal penalties. A commercial driver who refuses a chemical test faces a **1-year disqualification** for a first refusal and a **lifetime disqualification** for a second refusal (with possible reinstatement after 10 years under federal rules). This applies to ANY vehicle they're driving at the time of the stop, not just a commercial vehicle. A truck driver who refuses a breath test on the way home from your bar in his personal car loses his livelihood, not just his weekend.

If you have CDL regulars at your bar, this is worth knowing — most of them already know the rule and treat it as the floor, not the ceiling, of their personal cut-off.

Outcomes: K14

S2-C5 ? SCENARIO

Scenario: The refuser. A 38-year-old regular has had five drinks over 3 hours. As he's leaving, he tells you: "If they stop me, I'll just refuse the breathalyzer. Worst case I get a ride from a tow truck." He's a CDL holder — drives a propane truck for a living.

What's the most useful thing you can say to him before he walks out?

Options

1. **a.** "Suit yourself — your choice."
2. **b.** "Quick heads-up — if you refuse with a CDL, that's a 1-year disqualification. Even in your personal car. Let me get you a Lyft on us."
3. **c.** "You won't drive — I'm calling the cops right now."
4. **d.** "You'll be fine — you handle your liquor."

Outcomes: K14, P9

DUI penalty escalation (MCA 61-8-1007 for 1st-3rd; MCA 61-8-1008 for 4th+)

S3-C1 ? LIST

Per offense

- **1st offense: 24 hours to 6 months jail; \$600–\$1,000 fine;** 6-month license suspension; mandatory ACT (Assessment, Course, Treatment) program. (Enhanced to 48 hours to 1 year jail and \$1,200–\$2,000 fine if a passenger under 16 was in the vehicle.)
- **2nd offense: 7 days–1 year jail; \$1,200–\$2,000 fine;** 6-month suspension; **ignition interlock device (IID)** required upon reinstatement
- **3rd offense: 30 days–1 year jail; \$2,500–\$5,000 fine;** 1-year suspension; IID required
- **4th offense: FELONY.** No statutory time limit on counting priors, so every prior DUI conviction still counts. **13 months to 2 years custody plus a consecutive 5-year prison term, or up to 5 years in a treatment-court program; \$5,000–\$10,000 fine;** long-term IID; loss of certain civil rights during sentence

MCA 61-8-1007 (1st–3rd) + MCA 61-8-1008 (4th felony). Aggravated DUI at 0.16+ BAC enhances every tier.

	1st offense	2nd offense	3rd offense	4th offense – FELONY (lifetime lookback)
Jail	24 hours to 6 months	7 days to 1 year	30 days to 1 year	13 months in custody, up to 5 years prison
Fine	\$600–\$1,000	\$1,200–\$2,000	\$2,500–\$5,000	\$5,000–\$10,000
License	6-month suspension	6-month suspension	1-year suspension	revocation
IID	required upon reinstatement	required upon reinstatement	required	long-term

1st-offense enhanced to 48 hours – 1 year jail and
\$1,200–\$2,000 fine if a passenger under 16 was in the vehicle.

CertReady

Outcomes: K15

S3-C2 ? CALLOUT

The 4th-offense lookback. Some states only count prior DUIs from a 5- or 10-year window. Montana's felony-DUI statute sets **no statutory time limit**, so every prior DUI conviction on a person's record still counts toward the 4th-offense felony. A first DUI at 22 and a fourth at 55 still triggers the felony. There is no "clean slate" period.

Outcomes: K15

S3-C3 ? CALLOUT

Why the server should know this. When a customer at the bar is bragging about driving home or about a prior DUI, you now know what the next charge would cost them.

That helps you offer a ride or call their friend with confidence: this is real money, real jail, and a felony on the fourth strike. It's also a credibility check — if a customer tells you "I've been pulled over six times and never gotten DUI" and then asks for one more, you have a clearer sense of what's actually at stake for them.

Outcomes: K15

The server's role: keeping impaired customers off the road

S4-C1 ? TEXT

You're not a cop and you don't have to estimate BACs. But you have **huge influence at the moment a customer might choose to drive**. Most servers underestimate how much a friendly intervention works. The vast majority of customers — even ones who pushed back at the cut-off — accept a soft ride offer once they're walking toward the door.

Outcomes: P9

S4-C2 ? LIST

Server toolkit at the door

- **Offer a rideshare on the house.** Many establishments comp \$25 for a one-time Lyft or Uber. The cost is one drink; the savings (legal exposure + a customer's life) is everything.
- **Call a friend or family member** listed in the customer's phone, with their consent. "Mom" or "home" is often listed.
- **Hold their car keys (with consent)** while they sober up. Some bars have a designated key-hold board behind the bar.
- **Walk them to a cab line** if there is one nearby and they refuse a rideshare.
- **Document the intervention** in the incident log — covers the licensee under MCA 27-1-710 if there's ever a question about whether the bar tried to prevent driving.
- **Don't tackle them or take keys without consent.** That's a different legal problem (false imprisonment, conversion). Persuasion and a comp ride is the lane.

Outcomes: P9

S4-C3 ? CALLOUT

Phrasing that works. Customers respond to specifics, not generalities:

- "Let me grab you a Lyft, on us. Five minutes."
- "Mind if I call your wife? Just a heads-up so she's expecting you."
- "You can leave the car here tonight. We open at 11; come back tomorrow."
- "Coffee while you wait for the ride? Kitchen's still got fries."

Generic "are you okay to drive?" gets "yeah I'm fine" 90% of the time. Specific, no-friction offers get a yes.

Outcomes: P9

Two scenarios

S5-C1 ? SCENARIO

Scenario 1: "I've done this drive a thousand times." A 220 lb regular has had four 16 oz craft pints (about 7 standard drinks) over 2 hours. He's slurring slightly and grabbing the bar to stand. He says, "I live three blocks away, I've done this drive a thousand times," and starts pulling out keys.

What's the right move?

Options

1. **a.** Three blocks is fine. Let him go.
2. **b.** "Let me grab you a Lyft, five minutes, on us. You can leave the car — we open at 11." Document.
3. **c.** Take the keys out of his hand.
4. **d.** Tell him you're calling the police.

Outcomes: P9, K13

S5-C2 ? SCENARIO

Scenario 2: The CDL holder. A semi-truck driver in a fluorescent vest comes in for happy hour after his shift. He's clearly off-duty. He orders one beer, drinks it slowly, then pays.

Anything different about how you serve a CDL holder?

Options

1. **a.** No — he's off-duty, normal service.
2. **b.** Yes — he can't drink any alcohol because he holds a CDL.
3. **c.** Yes — limit him to one beer.
4. **d.** Yes — ask to see his CDL before serving.

Outcomes: K13

Implied consent, refusal suspensions, and the aggravated-DUI overlay

S6-C1 ? TEXT

Montana's implied-consent rule under MCA 61-8-1016 is one of the strongest tools on the law-enforcement side of the DUI framework. By operating a motor vehicle on a Montana road, a driver is deemed to have consented in advance to a blood, breath, or oral-fluid test if a peace officer has probable cause to believe the driver is impaired. **Refusing the test triggers an administrative license suspension under MCA 61-8-1032**, completely separate from any criminal DUI conviction. For a **first refusal**, the suspension is **6 months** with no possibility of a restricted probationary license. For a **second-or-subsequent refusal within 5 years**, the suspension is **1 year**, again with no restricted-license option. Every refused implied-consent test also carries a **\$300 administrative fee** payable to the department before the license can be reinstated. **Commercial driver's license holders carry an even sharper consequence:** a first refusal triggers a 1-year CDL disqualification under federal rules; a subsequent refusal triggers lifetime CDL disqualification. The server-side takeaway is straightforward — a customer you over-serve who then refuses a breath test the same night is looking at the criminal DUI charge AND a 6-month or 1-year administrative suspension AND a \$300 fee, none of which depend on the prosecutor proving impairment in court.

Outcomes: K13

S6-C2 ? CALLOUT

Aggravated DUI at 0.16 — the higher-tier threshold under MCA 61-8-1001. Montana defines 'aggravated driving under the influence' to include a per-se threshold of **0.16 BAC** (twice the standard 0.08 per-se DUI level under MCA 61-8-1002). A driver charged at or above 0.16 faces enhanced penalties at every offense level: longer minimum jail terms, higher fines, longer ignition-interlock requirements, and (for repeat offenders) a faster path to the 4th-offense felony framework under MCA 61-8-1008. The aggravated-DUI threshold is also a useful number to know on the service side: a 180-lb adult male reaches 0.16 BAC after roughly 8 standard drinks in an hour on an empty stomach; a 130-lb adult female reaches it after roughly 6. When you've watched a customer order their fifth or sixth round in a short window, the question on the table is not 'will they fail a breath test' but 'will they fail it at the aggravated level.' That's the math behind 'cut them off two rounds earlier than feels comfortable.' The 0.16 threshold also matters because it shifts the criminal-procedure picture: an aggravated DUI in Montana is one of the small set of misdemeanors where the prosecution often does not negotiate the charge down, and the mandatory minimum jail term on a first aggravated conviction is materially longer than a standard-tier first DUI. From the licensee's perspective, an aggravated-DUI defendant who was served at your bar is also the kind of defendant whose attorney will work backward from the breath-test result to the last bartender to pour — meaning the dram-shop notice under MCA 27-1-710(8) is more likely to arrive within the 180-day window when the underlying criminal case is aggravated than when it is a standard-tier first offense. For Montana servers, that converts directly into a service rule: when the table's drink count and timeline are tracking toward 0.16, the cost-benefit of cutting off two rounds early is overwhelmingly in favor of the cut.

Outcomes: K13

Module 8 Quiz

Passing score: 80%

Q1 ? MULTIPLE_CHOICE

What is the per-se BAC limit for noncommercial drivers age 21+ in Montana?

Options

1. a. 0.05
2. b. 0.08 **Correct**
3. c. 0.10
4. d. 0.16

Correct answer: b

Outcomes: K13

Q2 ? MULTIPLE_CHOICE

What is the per-se BAC limit for drivers under 21 in Montana?

Options

1. a. 0.00 (any detectable)
2. b. 0.02 **Correct**
3. c. 0.04
4. d. 0.08

Correct answer: b

Outcomes: K13

Q3 ? MULTIPLE_CHOICE

Under Montana's implied-consent law, what happens automatically when a driver refuses a chemical test, and how does it relate to the DUI case itself?

Options

1. **a.** Nothing happens unless the driver is later convicted of the DUI
2. **b.** The license is suspended automatically, separate from and in addition to any criminal DUI outcome, with a longer suspension for repeat refusals **Correct**
3. **c.** The driver simply pays a small fee and keeps driving
4. **d.** Refusal cannot be used against the driver in any way

Correct answer: b

Outcomes: K14

Q4 ? MULTIPLE_CHOICE

Montana DUI escalates from a misdemeanor to a felony with repeat convictions. Why does that escalation matter to a server deciding whether to keep pouring for a heavy regular?

Options

1. **a.** It does not matter to the server; DUI is only the driver's problem
2. **b.** Repeat DUIs become a felony with severe prison and fine exposure, so over-serving a customer who then drives can contribute to a life-altering outcome and to the licensee's dram-shop exposure **Correct**
3. **c.** Felony DUI erases the licensee's responsibility entirely
4. **d.** The penalty is the same at every offense level, so escalation is irrelevant

Correct answer: b

Outcomes: K15

Q5 ? MULTIPLE_CHOICE

What is Montana's per-se Delta-9 THC limit (in blood)?

Options

1. a. 1 ng/mL
2. b. 5 ng/mL **Correct**
3. c. 10 ng/mL
4. d. There is no per-se THC limit

Correct answer: b

Outcomes: K13

Q6 ? MULTIPLE_CHOICE

Aggravated DUI applies in Montana when:

Options

1. a. BAC is 0.10 or higher
2. b. BAC is 0.16 or higher, or refused chemical test with prior DUI in 10 years **Correct**
3. c. Driver is under 25
4. d. Driver is on a motorcycle

Correct answer: b

Outcomes: K13

Q7 ? MULTIPLE_CHOICE

How does Montana count prior DUI convictions when deciding whether a new DUI is the felony 4th offense?

Options

1. **a.** Only DUIs from the past 5 years count; older ones are cleared
2. **b.** Priors stop counting once the driver's license is reinstated
3. **c.** There is no statutory time limit, so every prior DUI conviction still counts and there is no clean-slate period **Correct**
4. **d.** Montana uses the same 10-year window as most other states

Correct answer: c

Outcomes: K15

Q8 ? SHORT_ANSWER

Name two intervention tools a server can use to keep an impaired customer from driving home.

Accepted keywords: rideshare, Lyft, Uber, call friend, family, hold keys, coffee, wait, ride, free ride, pickup, leave car

Outcomes: P9